



April 21, 2026

Subject: Request for Proposal No. 177045
All Electric Passenger Locomotives
Addendum No. 2

Dear Prospective Proposer:

The proposal due date has been extended to Friday, May 29, 2026 before 4:00 P.M. LPT/CT.

Addendum No. 2 is being issued to provide Metra's response to questions submitted to date by potential Proposers. Addendum No. 2 outlines all written questions submitted and Metra's responses to these questions.

All addenda must be acknowledged on Exhibit II Proposal Form. Failure to acknowledge an addendum may be cause for the proposal to be considered non-responsive.

Sincerely,

Denise Whitten

Denise Whitten
Sr. Contracting Officer
Procurement

PRE-PROPOSAL REQUEST FOR CHANGE OR APPROVED EQUAL (RFA)

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RFP No. 177045	Proposer:	Proposer's Request #: 1
Document and Page(s): RFP, 12		Section: VIII
Question/Clarification/Approved Equal: In the Technical Proposal and Submittal Requirements (Chapter VIII), Section 4 of Package 2 – Production & Delivery Schedule, item i.) is currently listed as “Detailed standard warranty policies & procedures.” Could METRA please clarify whether item i.) is intended to request a detailed production and delivery schedule, in order to align with the section title “Production & Delivery Schedule”?		
Metra's Response: Correct, Section 4: i. is intended to request a detailed Production & Delivery Schedule. Section 4: Production & Delivery Schedule i. Detailed standard warranty policies & procedures ii. Detailed Production & Delivery Schedule for Base Order iii. Delivery Schedule for option purchases, number of days after receipt of order/exercised option		

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RFP No. 177045	Proposer:	Proposer's Request #: 2
Document and Page(s): Contract Documents		Section: 5
Question/Clarification/Approved Equal: Please confirm that by completing EXHIBIT 1-B requirements for the following exhibits are met. e. Debarment and Suspension Certification, Prospective Contractor (Exhibit V) g. Non-Collusion Affidavit (Exhibit V) h. Anti-Lobbying Certification (Exhibit V)		
Metra's Response: See attached updated Section 5, Exhibit V. Addendum No. 2 shall replace the entire Exhibit V Affidavit / Certifications with the revised Exhibit V marked Addendum No. 2, dated April 21, 2026.		

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RFP No. 177045	Proposer:	Proposer's Request #: 3
Document and Page(s): RFP, 115		Section: 7.9.1.1
Question/Clarification/Approved Equal: The TMC-4 I-ETMS Train Control Computer specified in Section 7.9.1.1 relies on a 4G cellular communication module, which is going to become obsolete. The TMC-5, which utilizes a 5G-capable communication module, is the designated successor to this system. Could METRA please confirm whether the intent is to proceed with the 4G-based TMC-4 as specified, or if the 5G-capable TMC-5 should be proposed as an alternative?		
Metra's Response: 5G-capable TMC-5 should be proposed.		

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RFP No. 177045	Proposer:	Proposer's Request #: 4
Document and Page(s): RFP, 111		Section: 7.7.1
Question/Clarification/Approved Equal: Section 7.7.1 states that the radio specifications will be provided by METRA. Could METRA clarify when these specifications are expected to be made available, and whether any additional details can be provided at this time?		
Metra's Response: Specifications will be discussed/provided during technical negotiations with the highest rated proposer. Metra currently uses Ritron radio.		

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RFP No. 177045	Proposer:	Proposer's Request #: 5
Document and Page(s): RFP, 56		Section: 2.2 PAYMENT AND PERFORMANCE BONDS
Question/Clarification/Approved Equal: We noted that the bond requirement references the AIA Document A311 – February 1970 Edition. We would like to kindly request substituting this document with the AIA Document A312 – 2010 Edition. The A312–2010 form is the successor to the A311 bond and is recognized as the current market standard across the construction industry. It reflects modernized bond language, updated obligations, and current practices, ensuring alignment with today's contract and surety requirements. Using the A312–2010 edition helps avoid inconsistencies that may arise when relying on the outdated A311 form and provides a more robust and widely accepted framework for all parties. We kindly request your confirmation on whether you would be open to this update or if further documentation or clarification would be helpful.		
Metra's Response: The awarded Proposer will use Metra's Payment and Performance Bond form, see Section 5. Exhibit 8. Addendum No. 2 shall replace the entire Contract Sections 1, 2, and 3 with the revised Contract Sections 1, 2, and 3 marked Addendum No. 2 dated April 21, 2026.		

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RFP No. 177045	Proposer:	Proposer's Request #: 6
Document and Page(s): RFP, 56		Section: 2.2 PAYMENT AND PERFORMANCE BONDS
Question/Clarification/Approved Equal: Regarding the surety bond requirement outlined in the RFP, we would like to propose providing a Parent Company Guarantee (PCG) as an alternative form of financial security. Our parent company is part of a larger group—one of the world's most financially robust and stable industrial corporations. The group maintains current strong credit ratings of S&P AA- and Aa3 from Moody's and a long-standing record of financial strength, profitability, and reliable performance in global infrastructure and mobility markets. With direct involvement in the rolling stock business, including the design and manufacture of locomotives, we can contribute to ensuring seamless contract performance, including as a rolling stock manufacturer the ability to deliver locomotives or other rolling stock equipment if ever required. This offers a level of practical performance security other security cannot provide. In addition, we offer excellent financial assurance while being significantly more cost-effective. We kindly request your confirmation on whether a Parent Company Guarantee would be acceptable under the RFP requirements.		
Metra's Response: No.		

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RFP No. 177045	Proposer:	Proposer's Request #: 7
Document and Page(s): RFP, 54		Section: 1.20 INSURANCE REQUIREMENTS
Question/Clarification/Approved Equal: Due to the structure of our global insurance program and the manner in which our defense costs are provided outside of our liability limits, we are unable to state the following sentence on our Certificate of Insurance: <i>"The certificate of insurance shall clearly state how defense costs, also known as 'allocated loss adjustment expenses,' shall apply in terms of the deductible and the insurance limits."</i> Providing this level of claim-specific detail on a project-level certificate would require us to procure a separate project-specific policy solely to meet this wording requirement. Such a policy would impose significant and unnecessary additional cost without providing any meaningful increase in protection for Metra, given that we already maintains higher insurance limits than those required in the RFP and is supported by a multi-billion-dollar balance sheet. For these reasons, we respectfully requests removal of this sentence from the insurance requirements.		
Metra's Response: See updated Section 1.20 Insurance Requirements. Addendum No. 2 shall replace the entire Contract Sections 1,2, and 3 with the revised Contract Sections 1,2, and 3 marked Addendum No. 2 dated April 21, 2026.		

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RFP No. 177045	Proposer:	Proposer's Request #: 8
Document and Page(s): RFP, 70		Section: 2.7.5 Milestone Payment Schedule
Question/Clarification/Approved Equal: Because locomotive manufacturing is inherently front-loaded in cost, a payment plan that defers revenue to late milestones forces price in significant financing and risk-carrying costs. Our proposed milestone structure aligns payments with actual expenditures, enabling us to remove these unnecessary financing costs from our pricing. This results in a lower overall total cost to METRA while maintaining all quality, delivery, and warranty protections. Therefore, we respectfully proposes this milestone payment schedule: 1. Notice to Proceed (NTP): 15% 2. Carshell Completion: 50% (pro-rated per locomotive) 3. Fitness for Delivery & Approval for Shipment: 17% (pro-rated per locomotive) 4. Conditional or Final Acceptance: 17% (pro-rated per locomotive) 5. Completion of Initial Three-Year Warranty: 1%		
Metra's Response: Milestone payment schedules will be discussed during technical negotiations with the highest rated proposer .		

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RFP No. 177045	Proposer:	Proposer's Request #: 9
Document and Page(s): RFP, 36		Section: 1.10.4 Prompt Payment to Subcontractors and Supplier
Question/Clarification/Approved Equal: We work with a global network of hundreds of suppliers operating under long-standing contracts, framework agreements, and negotiated payment terms that we are contractually obligated to honor. These terms vary significantly, and some suppliers require progress payments or even upfront payments before components are produced or delivered. We must comply with these pre-existing commitments independently of when milestone payments are received, the subcontractor-payment provision in the RFP does not reflect how our supply chain operates. We respectfully request METRA's consideration in adjusting this requirement, so it aligns with established industry practices and the practical realities of locomotive manufacturing.		
Metra's Response: Metra cannot adjust this requirement. Progress payments are a State of Illinois statutory requirement.		

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RFP No. 177045	Proposer:	Proposer's Request #: 10
Document and Page(s): RFP, 57 and 60		Section: 2.3.5 Conditional Acceptance 2.3.6 Final Acceptance 2.5.3 Time Periods of the Warranties
It is our understanding of the specification as follows: • Section 2.3.5 – Conditional Acceptance Indicates that Conditional Acceptance permits a locomotive to enter supervised revenue service. • Section 2.3.6 – Final Acceptance States that Final Acceptance is issued only after all Open Items have been resolved and the locomotive is deemed fully compliant for general revenue service. • Section 2.5.3 – Time Periods of the Warranties Contains statements that appear to conflict regarding the start of the warranty period: - o “The warranty period will commence on Conditional Acceptance, unless there are Open Items.” - o “For any locomotive or component that is Conditionally Accepted, the warranty shall commence on the date of Final Acceptance.” - o Taken together, these provisions create ambiguity regarding the actual trigger for the start of the overall locomotive warranty period, particularly in situations where Conditional Acceptance includes Open Items. Because Metra may begin supervised revenue service upon issuing Conditional Acceptance — even when Open Items remain — Conditional Acceptance functions as the practical and operational milestone for warranty commencement. Final Acceptance, by contrast, cannot occur until all Open Items have been addressed. Tying warranty commencement to Final Acceptance would therefore postpone warranty coverage for the entire locomotive until all Open Items are closed, which conflicts with the earlier clause and the intended purpose of Conditional Acceptance. We respectfully request confirmation that the Warranty Period shall commence upon the date of Conditional Acceptance, with the understanding that Conditional Acceptance may be issued with Open Items outstanding.		

Metra Response:

Confirmed. The warranty period will commence on Conditional Acceptance, unless there are Open Items. Addendum No. 2 shall replace the entire Contract Sections 1, 2, and 3 with the revised Contract Sections 1, 2, and 3 marked Addendum No. 2 dated April 21, 2026.

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RFP No. 177045	Proposer:	Proposer's Request #: 11
Document and Page(s): RFP, 56		Section: 2.2 PAYMENT AND PERFORMANCE BONDS
Question/Clarification/Approved Equal: To align with surety market, we would request that Metra expand the clause regarding option bonding to include a no recourse provision. This aligns the provision with typical surety practice by providing that: <i>“Additional bonds, in the amount of one hundred (100%) of each option, shall be provided within thirty (30) days of Metra exercising any option.”</i> For the avoidance of doubt, should Contractor fail to provide the required bonding or security for an option such failure or inability shall not constitute a loss to Metra which is recoverable under any other bond or security previously provided or arranged for by Contractor pursuant to the Contract. This limitation shall not prohibit or affect any other right Metra has under the Contract due to failure to provide or maintain Contract security.” Based on our experience in the surety market, we can confirm that this practice is standard towards a project's bond ability (i.e., ensuring no cross-default among securities).		
Metra's Response: No.		

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RFP No. 177045	Proposer:	Proposer's Request #: 12
Document and Page(s): RFP, 56		Section: 2.2 PAYMENT AND PERFORMANCE BONDS
Question/Clarification/Approved Equal: Surety bonding should have clear limitations on the validity of the bond, excluding longer terms contractual on items such as car bodies. This is consistent with our experience on rolling stock contracts. We would propose amending section 2.2 to read: We proposed adding after the language <i>“Unless otherwise agreed, the bonds shall be continuously in effect until completion of all of Contractor’s obligations.”</i> wording to set a clear duration for the bonds: “For avoidance of doubt, the surety bonding under this section 2.2 shall remain valid until thirty-six (36) months after Conditional Acceptance after which they shall become null and void. After conclusion of the bond validity, Metra at the request of the Contract shall return the bonds together with documentation to facilitate close out by the issuer(s) of such bonds.”		
Metra's Response: No.		

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RFP No. 177045	Proposer:	Proposer's Request #: 13
Document and Page(s): Multiple		Section: 7.2.2; 7.2.3; 7.2.9; 7.2.13; 7.2.16; 7.2.19; 7.7.2.3; 12.6.7
Question/Clarification/Approved Equal: Further details and a system description would be helpful to understand the function of the switch "Propulsion Battery RUN/STOP". Combined RFI: Could METRA please provide detailed system descriptions and functional explanations for the following items to ensure proper understanding and integration into the vehicle design? Propulsion Battery RUN/STOP switch Propulsion Battery run switch Blended brake lockout reset switch Layover protection switch Manual (on/off) control switch for activating layover protection circuitry Layover alarm test switch Isolation switch This information will help us ensure correct system interfaces, operational logic, and safety functionality.		
Metra's Response: Specifications will be discussed during technical negotiations. Some functions are based on Metra's current locomotives and, if applicable, the functionality should be included in this procurement's design: Propulsion Battery RUN/STOP switch: -equivalent to the MU Run/Stop. Reason is that the cars also have a run/stop switch and need to be compatible with the battery locomotive. So this would energize D valve. (The equivalent EFCO functionality is listed elsewhere in section 7.2.18 "emergency power cutoff, prime mover push-button"). Propulsion Battery run switch: -this slide switch allows for the locomotive throttle handle setting to influence locomotive propulsion Blended brake lockout reset switch -this momentary slide switch is used to manually reset the counter for when a blended brake lockout condition occurs. Layover protection switch -manual (on/off) control slide switch for activating layover protection circuitry. Layover alarm test switch -this slide switch allows the operator to test the layover protection alarm system. when moved to the closed position it will illuminate the layover alarm light and simulate a failure of the layover protection system. Isolation switch: -the is a rotary switch with two settings, START/STOP/ISOLATE/INSPECT and RUN. Setting the switch in the START/STOP/ISOLATE/INSPECT position, the locomotive will not develop tractive or blended braking effort. The high voltage propulsion system will be in a disconnected state. Moving the switch to the RUN position will allow the locomotive to respond to operator requests for tractive effort and blended brake operation.		

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RFP No. 177045	Proposer:	Proposer's Request #: 14
Document and Page(s): 51 of 113		Section: 14.3.4
Question/Clarification/Approved Equal: Requests clarification on how Metra integrates their Remote Services (RS) system with the standard APTA 27-pin communication interface and corresponding APTA trainline signal assignments. To ensure proper system compatibility, wiring design, and functional allocation, please provide a detailed description of the interfaces, signal mappings, and any special considerations or deviations from standard APTA practices.		
Metra's Response: Specifications will be discussed during technical negotiations. Metra is including the Loco Control Circuit for reference. Note: spare train lines shown may already be allocated for passenger cars but does not impact the locomotive.		

NOTE 4. WIRES IN 27 PT. LOCO CONTROL TRAINLINE

TRAINLINE JUMPER WIRING					TRAINLINE CIRCUIT	CAR TRAINLINE WIRING	
WIRE NO.	AWG SIZE	COLOR	CABLE	PIN NO.		WIRE SYMBOL	AWG SIZE
1	#12	WHT	A	1	SPARE	SP1	#12
2	#12	BLK	A	2	ENGINE FAULT/ATTENDANT CALL	SG	#12
3	#12	RED	B	3	ENGINE SPEED - D VALVE (ENGINE STOP)	DV	#12
4	#10	BLK	D	4	NEGATIVE #1	N1	#8
5	#12	BLK	B	5	EMERGENCY SANDING	ES	#12
6	#12	RED	A	6	GENERATOR FIELD	GF	#12
7	#12	WHT/BLK	A	7	ENGINE SPEED - C VALVE	CV	#12
8	#12	BLU	A	8	FORWARD-LOCOMOTIVE PULLING	FO	#12
9	#12	GRN	B	9	REVERSE-LOCOMOTIVE PUSHING	RE	#12
10	#12	WHT/BLK	B	10	WHEEL SLIP INDICATION	WS	#12
11	#12	GRN	A	11	NEGATIVE #2	N2	#12
12	#12	ORG	A	12	ENGINE SPEED - B VALVE	BV	#12
13	#10	WHT	D	13	POSITIVE CONTROL	PC	#8
14	#12	ORG	B	14	COMMUNICATING SIGNAL	TS	#12
15	#12	BLU	B	15	ENGINE SPEED - A VALVE	AV	#12
16	#12	WHT	B	16	ENGINE RUN	ER	#12
17	#12	RED	C	17	POSITIVE #1	P1	#12
18	#12	WHT/BLK	C	18	DOORS CLOSED (LOCO. INDICATION LIGHT) POSITIVE	DP	#12
19	#12	BLK	C	19	NEGATIVE #3	N3	#12
20	#12	GRN	C	20	DOORS CLOSED (DOOR LIMIT SWITCH) POSITIVE	PDB/PDA	#12
21	#10	RED	D	21	POSITIVE #2	P2	#8
22	#12	BLU	C	22	GROUND RELAY TRIPPED INDICATION	GR	#12
23	#12	ORG	C	23	MANUAL SANDING	SA	#12
24	#10	WHT/BLK	D	24	SPARE	SP24	#8
25	#10	GRN	D	25	LIFT DEPLOYED INDICATION	LD	#8
26	#10	ORG	D	26	SPARE	SP26	#8
27	#10	BLU	D	27	SPARE	SP27	#8
					SPARE	SP28	#12
					SPARE	SP29	#12
					SPARE	SP30	#12
					SPARE	SP31	#12

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RFP No. 177045	Proposer:	Proposer's Request #: 15
Document and Page(s): N/A		Section: N/A
Question/Clarification/Approved Equal: Given the requirement to provide 20-year life-cycle costs, including preventive maintenance and overhaul activities, is METRA open to discussing a TSSSA or long-term maintenance contract as part of the support model? This would provide METRA with daily support for maintenance activities as well as the materials required to perform them.		
Metra's Response: Specifications will be discussed during technical negotiations. Yes, Proposers may propose TSSSA and/or alternative maintenance options that can be discussed with Metra.		

CONTRACT DOCUMENTS

Sections 1, 2 and 3



REQUEST FOR PROPOSAL

RFP NO. 177045

ALL ELECTRIC PASSENGER LOCOMOTIVES

NORTHEAST ILLINOIS REGIONAL COMMUTER RAILROAD CORPORATION D/B/A METRA
CONSTRUCTION & FACILITIES MAINTENANCE PROCUREMENT
547 WEST JACKSON BOULEVARD
CHICAGO, IL 60661

CONTENTS

1	General Conditions	1-1
1.1	Definitions.....	1-1
1.2	Performance	1-4
1.3	Authorities and Limitations.....	1-4
1.4	Order of Precedence	1-5
1.5	Materials and Workmanship.....	1-5
1.5.1	Equipment/Supplies.....	1-5
1.5.2	Hazardous Material Identification and Safety Data Sheets	1-6
1.6	Conformance with Specifications and Drawings	1-6
1.7	Inspection and Testing	1-6
1.7.1	General.....	1-6
1.7.2	Non-Conforming Work.....	1-7
1.7.3	Risk of Loss	1-7
1.8	Delivery	1-8
1.9	Liquidated Damages.....	1-8
1.9.1	Generally	1-8
1.9.2	Delivery and Acceptance Factor	1-8
1.9.3	Accrued Liquidated Damages.....	1-9
1.10	Payment	1-9
1.10.1	General Payment Conditions	1-9
1.10.2	Invoicing	1-9
1.10.3	Grant Funded Invoicing.....	1-10
1.10.4	Prompt Payment to Subcontractors and Suppliers	1-10
1.10.5	Taxes	1-10
1.11	Title and Warranty of Title	1-10
1.12	Legal clauses.....	1-11
1.12.1	Notices	1-11
1.12.2	Indemnification	1-11
1.12.3	Indemnitee Gross Negligence or Willful Misconduct	1-12
1.12.4	Intentionally Omitted.....	1-12
1.12.5	Suspension of Work	1-12

1.12.6	Notice of Labor Dispute	1-13
1.12.7	Force Majeure	1-13
1.12.8	Termination for Convenience	1-14
1.12.9	Termination for Breach	1-14
1.12.10	Intentionally Omitted	1-14
1.12.11	Waivers of Remedies for Any Breach	1-14
1.12.12	Compliance with Laws and Regulations	1-15
1.12.13	Changes of Law	1-15
1.12.14	Maintenance of Records; Access by Metra; Right to Audit Records	1-15
1.12.15	Intentionally Omitted	1-15
1.12.16	Conflicts of Interest; Gratuities	1-15
1.12.17	General Nondiscrimination Clause	1-16
1.12.18	Modification of Contract; Waiver	1-16
1.12.19	Remedies Not Exclusive	1-17
1.12.20	Counterparts	1-17
1.12.21	Severability	1-17
1.12.22	Third Party Beneficiaries	1-17
1.12.23	Assignment of Contract	1-17
1.12.24	Independent Parties	1-17
1.12.25	Survival	1-17
1.13	Intellectual Property	1-18
1.13.1	Intellectual Property Indemnification	1-18
1.13.2	Intellectual Property Warranty	1-18
1.13.3	Tooling Rights	1-19
1.14	Data Rights	1-19
1.14.1	Proprietary Rights/Rights in Data	1-19
1.14.2	Software Identification and Escrow Account	1-20
1.15	Changes	1-21
1.15.1	Contractor Changes	1-21
1.15.2	Metra Changes	1-22
1.15.3	Claims	1-22
1.15.4	Disputes	1-24
1.16	Illinois Freedom of Information Act (FOIA)	1-25

1.16.1	Generally	1-25
1.16.2	Confidential Information.....	1-25
1.17	Americans with Disabilities Act.....	1-26
1.18	Appropriation.....	1-26
1.19	Certifications	1-26
1.20	Insurance Requirements	1-27
1.20.1	Requirements.....	1-27
2	Special Conditions	2-30
2.1	Term and Order Process	2-30
2.2	Payment and Performance Bonds	2-30
2.3	Delivery and Acceptance.....	2-30
2.3.1	Generally	2-30
2.3.2	Pre-Shipment Inspection and Fitness for Delivery.....	2-31
2.3.3	Notice of Arrival	2-31
2.3.4	Operational Testing.....	2-31
2.3.5	Conditional Acceptance	2-31
2.3.6	Final Acceptance	2-31
2.4	Parts Availability.....	2-31
2.5	Warranty and Reliability	2-32
2.5.1	General Warranties.....	2-32
2.5.2	Availability and Reliability Warranty.....	2-33
2.5.3	Time Periods of the Warranties	2-34
2.5.4	Warranty Notice.....	2-35
2.5.5	Corrective Work Requirements	2-35
2.5.6	Fleet Deficiency Remedy.....	2-37
2.5.7	Timeliness	2-37
2.5.8	Use of Metra-Owned Spare Parts	2-38
2.5.9	Delays and Disruption	2-38
2.5.10	Repairs by Metra.....	2-38
2.5.11	Warranties of the Corrective Components.....	2-38
2.5.12	No Waiver	2-39
2.5.13	No Increase in Maintenance or Operating Costs	2-39
2.5.14	Metra Warranty Claim	2-39

2.6	Liquidated Damages.....	2-39
2.6.1	Generally	2-39
2.6.2	Removal from Service	2-39
2.6.3	Delayed Warranty Response or Effective Corrective Action	2-40
2.6.4	Accrued Liquidated Damages.....	2-40
2.7	Price Proposal	2-41
2.7.1	Generally	2-41
2.7.2	Base Index	2-41
2.7.3	Unit Pricing.....	2-41
2.7.4	Unit Prices	2-42
2.7.5	Milestone Payment Schedule	2-43
3	FTA Clauses	3-45
3.1	No Government Obligations to Third Parties	3-45
3.2	Program Fraud and False or Fraudulent Statements and Related Acts.....	3-45
3.3	Access to Records and Reports	3-45
3.4	Federal Clauses	3-45
3.5	Civil Rights Requirements	3-46
3.6	Incorporation of Federal Transit Administration (FTA) Terms.....	3-47
3.7	Cargo Preference	3-47
3.8	Fly America Requirements	3-47
3.9	Transit Employee Protective Agreements	3-48
3.10	Drug and Alcohol Testing	3-48
3.11	Patent Rights	3-48
3.12	Copyright and Rights in Data	3-49
3.13	Energy Conservation Requirements	3-51
3.14	Assignability Clause.....	3-51
3.15	Termination.....	3-51
3.16	Recycled Products	3-51
3.17	Suspension and Debarment.....	3-51
3.18	Clean Air Act and Federal Water Pollution Control Act	3-52
3.19	Buy America Requirements	3-52
3.20	Breaches and Dispute Resolution	3-52
3.21	ADA Access and Accessibility	3-52

3.22	Pre-Award and Post-Delivery Audit Requirements.....	3-53
3.23	Contract Work Hours and Safety Standards Act.....	3-53
3.24	Safe Operation of Motor Vehicles	3-53
3.24.1	Seat Belt Use	3-53
3.24.2	Distracted Driving.....	3-53

1 GENERAL CONDITIONS

1.1 DEFINITIONS

The following are definitions of special terms used in this document.

Addenda/Addendum: Written modifications to the published solicitation issued by Metra.

Amendment: Any change to non-financial terms such as delivery and expiration dates, FOB terms, purchase order terms, and corrections of computer input errors.

Approved Equal or Equivalent: An item, material, or method offered as a substitute for that designated in the solicitation and/or contract documents, for which approval in writing has been obtained from Metra. The burden of proof that a substitute is in fact equal shall rest with the Contractor.

Authorized Representative: The person or firm authorized or empowered to act for, or on behalf of, the Parties in accordance with the terms of this Contract. For the Contractor, this party may be referred to as the Contractor's Representative.

Authorized Signer: The person who is executing the Contract on behalf of the Contractor who is authorized to legally bind the Contractor.

Bid: Includes the term "offer" or "proposal" as used in the context of a procurement or sale. A submittal to Metra in response to a solicitation.

Bidder/Offeror: One who makes a bid or submits a proposal. One who offers to perform a certain contract for a specified price.

Breach: Failure to comply with any of the material terms and/or conditions of contract.

Change: Any alteration in the contract documents modifying the scope of work, price, equipment, materials, facilities, services, site, performance, schedule, other material provision of the Contract, or any term that creates a material effect on contractor's performance of the Contract.

Change Order: A written document that alters the scope of work to be performed by the Contractor, changes the schedule of performance, increases or decreases the contract price, or increases or decreases the contract time.

Claim: A written demand or assertion by one of the contracting parties seeking, as a matter of right, the payment of money, the adjustment or interpretation of contract terms, or other relief arising under, or relating to, the Contract.

Contract: An agreement, including all exhibits and documents incorporated by attachment or reference, entered into by Metra for acquisition of supplies, services, construction, construction-related services, architectural services, engineering services, or the lease of real property.

Contract Modification: The term used for an interim action taken to extend the expiration date of a contract, or make other changes to the contract, prior to the issuance of a Change Order or Amendment.

Contract Time: The number of days, or portion thereof, allowed for completion of the Work, including all authorized time extensions. The date specified in the Notice to Proceed shall be the date on which the contract time begins, and the scheduled completion date shall be the date the Contract Time ends.

Contractor: The entity to whom the Contract is awarded.

Contractor's Representative: The person designated by the Contractor to act on its behalf.

Cure Notice: Written notice from Metra to the Contractor to cure a default or deficiency or to correct Work performed not in conformance with the Contract.

Days: Calendar days unless otherwise indicated.

Delivery: The time when equipment and/or services are turned over and fully accepted by Metra at its designated acceptance facility.

Defect/Defective: The condition of any part of the Work that does not meet the contract document requirements; causes the good and/or service to cease operating or to operate in a degraded mode; or inflicts damage or harm on any other portion of the work, prior to Final Acceptance or during the period of any warranty.

Dispute: A disagreement between Metra and the Contractor as to the merits, amount or remedy arising out of a Claim or asserted default.

Drawings: All drawings necessary or required for the prosecution of the Work.

Effective Date: The date on which the Contract becomes fully executed by the parties' Authorized Representatives in accordance with the terms of this Contract.

Equipment: Any and all machinery, vehicles, systems, assemblies, subassemblies, products, material fittings, devices, appliances, fixtures, apparatus, supplies and parts used by the Contractor or provided by the Contractor to Metra pursuant to, or in implementation of, the Contract.

Final Acceptance: Acceptance by Metra of all Work under the Contract, or a specified portion thereof, by the issuance of a Notice of Final Acceptance, or other appropriate document of acceptance, certifying that the Work, or portion thereof, has been fully completed in accordance with the Contract.

Final Payment: Payment made to the Contractor within 30 days of presentation of the Contractor's final invoice and issuance of Notice of Final Acceptance by Metra.

FTA: “FTA” means Federal Transit Administration, an Agency of the Department of Transportation of the United States Government.

Government: Any federal, state or local government and any political subdivision or any governmental, quasi-governmental, judicial, public or statutory instrumentality, administrative agency, authority, body, or entity other than Metra.

IDOT: “IDOT” means Illinois Department of Transportation.

Metra: The Commuter Railroad Division of the Regional Transportation Authority.

Notice of Intent to Claim: A written notice of a potential claim submitted by the Contractor to Metra within the time limits and under the circumstances specified in the Contract Documents.

Notice to Proceed (NTP): Written authorization from Metra to the Contractor that establishes the date that the Contractor is to start work and the Contract Time begins.

Notice of Termination: A written notice delivered by Metra to the Contractor terminating the Contract, either for convenience or for cause/default.

Parties: Term Contractor and Metra are sometimes collectively referred to as.

Pass-Through Warranty: A warranty provided by the Contractor but administered directly with the component supplier.

Project Manager: The individual designated by Metra or the Contractor to manage the Contract on a day-to-day basis.

Proposer: The legal entity that responds to Metra’s Request for Proposal.

Proposal: An offer submitted to Metra in response to Metra’s Request for Proposal.

Request for Proposal (RFP): The document issued by Metra and soliciting proposals with respect to the Work to be performed under the contract documents.

RTA: “RTA” means Regional Transportation Authority, a unit of local government, body politic, political subdivision and municipal corporation under the laws of the State of Illinois.

Specifications: All things described, stated, or referenced in the contract documents entitled Technical Specifications, Statement of Work, Scope of Work, or any other description of the Work.

Subcontractor: Any person, firm, partnership, corporation, or other entity, other than employees of the Contractor, that are hired or contracted for by the Contractor to perform work and/or furnish labor, or labor and materials, under the Contract.

Sub-supplier: Any manufacturer, company, or agency, providing components or parts to a Supplier for inclusion of work under the Contract.

Submittal: Any written or graphic document or sample prepared by or for the Contractor that is required by the contract documents to be submitted to Metra by the Contractor.

Superior Warranty: A warranty still in effect after all contractually required warranties have expired and administered directly between the Supplier and Metra.

Supplier: Any individual, partnership, firm, corporation, joint venture, or any combination thereof, who provides material or equipment, but not labor or services, to the Contractor and who is responsible to the Contractor by virtue of an agreement with the Contractor.

Suspension: A temporary stop, delay, interruption, or cessation.

Total Contract Price: The total amount payable to the Contractor plus the price of any options exercised, and/or Change Orders during the Contract Time.

Work: All designs, engineering, manufacturing, operations, materials, equipment, parts, and labor required to properly, timely, and to the satisfaction of Metra, provide all services and/or materials required in the Contract Documents, including all alterations, amendments, or extensions thereto made by Change Order; the successful completion of all required tests and all reliability periods; the remedy of all defects and completion of all necessary repairs and modifications resulting from the tests, the reliability periods, and warranties as required by the Contract Documents.

1.2 PERFORMANCE

Contractor shall provide everything necessary to complete this Contract on order and in compliance with all obligations under this Contract, including, but not limited to the following: all permits, labor, materials, manuals, training, components, tools, equipment, insurance, transportation, facilities, services, etc., necessary to furnish and deliver the equipment specified in the Contract.

1.3 AUTHORITIES AND LIMITATIONS

This Contract is made and shall be interpreted under the laws of the State of Illinois, and Contractor, and each of Contractor's sureties, agrees and consents that only the courts of the State of Illinois, the United States District Court for the Northern District of Illinois, the 7th Circuit Federal appellate courts, and the United States Supreme Court shall have jurisdiction over related controversies. Contractor and Contractor's sureties irrevocably consent to jurisdiction of said courts and waive any objection based on venue or forum non convenience.

The articles, sections, paragraphs or other headings shown are for convenience and reference only and in no way define, limit, or describe the scope or intent of this Contract.

The Contract is the entire agreement of the parties. It may not be modified or terminated orally, and no claimed modification, termination, or waiver shall be binding on Metra unless in writing signed by the Sr. Division Director, General Administration or his designee, collectively Metra's

Authorized Representative. No modification or waiver shall be deemed effected by the Contractor's acknowledgement or confirmation containing other or different terms.

All work shall be performed under the direction of the Sr. Division Director, General Administration, or his/her designee, who alone shall have the power to bind Metra and to exercise the rights, responsibilities, authorities, and functions vested in him by the Contract. Wherever any provision in this Contract specifies an individual (such as, but not limited to, Engineer, Inspector, Site Manager, or Architect) or organization, whether Metra or private, to perform any act on behalf of or in the interests of Metra, that individual or organization shall be deemed to be Metra's Sr. Division Director, General Administration's Authorized Representative under this Contract, but only to the extent so specific. The Sr. Division Director, General Administration may, through written instrument, at any time during the performance of this Contract, vest in any such Authorized Representatives additional power and authority to act for him.

The Contractor shall perform the Contract in accordance with any order (including but not limited to instruction, direction, interpretation, or determination) issued by an Authorized Representative in accordance with the authority to act for Metra's Sr. Division Director, General Administration. Contractor assumes all the risk and consequences of performing the Contract in accordance with any order (including but not limited to instruction, direction, interpretation, or determination) of anyone not authorized in writing to issue such order.

All Contract documents, conferences, letters, technical information, and drawings provided by the Contractor shall be conducted or offered solely in the English language using both the U.S. customary system of weights and measures and the Metric units of system of weights and measures.

1.4 ORDER OF PRECEDENCE

The order of precedence of the component parts of the Contract Documents, as amended, in accordance with this Contract shall be as follows:

- FTA Clauses
- Special Conditions
- General Conditions
- Plans and Drawings, if any
- Detailed Specifications

Any issued Addenda or Change Order shall be a part of the Contract and shall take precedence over any other part of the Contract wherever they conflict. The foregoing order of precedence shall govern the interpretation of the Contract in all cases of conflict or inconsistency therein, except as may be otherwise expressly provided in other parts of the Contract.

1.5 MATERIALS AND WORKMANSHIP

1.5.1 Equipment/Supplies

The Contractor shall be responsible for all materials and workmanship for the equipment/supplies procured, whether manufactured by the Contractor, Subcontractor, or purchased from another supplier. This provision excludes any equipment leased or supplied

by Metra, except insofar as such equipment is damaged by the failure of a part or component for which the Contractor is responsible, or except insofar as the damage to such equipment is caused by the Contractor during performance of the Work. Unless specifically provided for in the detailed specifications, all materials and parts furnished by the Contractor shall be new and free from defects.

1.5.2 Hazardous Material Identification and Safety Data Sheets

Hazardous material includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including any revisions adopted during the term of the contract).

The Contractor must identify any hazardous material to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Safety Data Sheet (SDS) submitted under this contract.

During performance of this Contract, the Contractor shall notify Metra in writing if the Contractor determines that any other material to be delivered under this contract is hazardous.

The Contractor agrees to submit, for each item as required, a SDS, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material. If during performance of this contract, there is a change in the composition of the hazardous material(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate data on the SDS, the Contractor shall promptly notify Metra and resubmit the data.

1.6 CONFORMANCE WITH SPECIFICATIONS AND DRAWINGS

Materials furnished and Work performed by the Contractor shall conform to the requirements of the specifications and Contract. Notwithstanding the provision of drawings, technical specifications, or other data by Metra, the Contractor shall have the responsibility of supplying all parts and designs required to complete the Work as defined, even if such details may not be specifically mentioned in the drawings and specifications. Items that are installed by Metra shall not be the responsibility of the Contractor unless they are included in the Contract (such as warranty repairs). Unless otherwise specified in the specification and/or Contract, all product(s) and material(s) shall be of new construction, new production, or manufactured new with all new sub-components. Metra will not accept refurbished, recycled, or remanufactured product(s) or material(s) as being of new construction, new production, or manufactured as new.

1.7 INSPECTION AND TESTING

1.7.1 General

Metra shall at all times have access to the Work, the Contractor and, through the Contractor, its Subcontractors and Suppliers. The Contractor, Subcontractors, and Suppliers shall furnish every reasonable facility for ascertaining that the materials and the workmanship are in accordance with the requirements of the Contract. All Work done shall be subject to Metra's inspection and approval.

The Contractor shall inspect all materials, supplies, and equipment that are to be used, or incorporated in the Work. In addition, the Contractor shall conduct a continuous program satisfactory to Metra of quality control for all Work performed under the Contract. The Contractor shall have the primary responsibility for inspecting the Work. Metra's inspection is conducted to verify that the Contractor has performed its inspections properly. Any observation, verification, inspection, or approval of the Work by Metra shall not relieve the Contractor of any of its obligations to perform the Contract as prescribed. If, in the opinion of Metra, the Contractor fails to execute its responsibility for quality control and inspection on any part of the Work, then Metra, or its designee, may, at its option, conduct quality control and inspection activities in lieu of the Contractor at the Contractor's expense. Such inspection shall not relieve the Contractor of its liability for defective or unsuitable Work, as described in Section 1.7.2 *Non-Conforming Work*.

1.7.2 Non-Conforming Work

If Metra determines that materials, equipment, or workmanship proposed for or used in the Work is non-conforming, then Metra shall have the right to reject such Work by giving the Contractor written notice that such Work is non-conforming. Metra, at its option, shall require the Contractor, within a designated time period as set forth by Metra, to either (1) promptly repair, replace, or correct all Work not performed in accordance with the Contract at no cost to Metra; or (2) provide a suitable corrective action plan at no cost to Metra for its acceptance. Once accepted by Metra, the Contractor shall implement the corrective action plan at no cost to Metra. If the corrective action plan as accepted by Metra does not remedy the defective or non-conforming Work, then the Contractor shall remain responsible for remedying the non-conforming Work to Metra's satisfaction and at no additional cost to Metra. The Contractor shall also be responsible for repairing all property and Work damaged by the Contractor at no cost to Metra. Under no circumstances shall the Contractor be entitled to additional time or money for the correction of defective or non-conforming work, or for the repair of damaged property. Metra facilities may not be used for repair work by Contractor, unless authorized by Metra.

Metra's inspection of the Work or right to reject non-conforming Work shall not relieve the Contractor of its full responsibility for performing the Work in full conformance with the Contract. No failure or forbearance of Metra in notifying the Contractor of non-conforming Work shall relieve the Contractor of its Contract responsibility to ensure that the Work is performed in accordance with the Contract.

1.7.3 Risk of Loss

Risk of loss and property damage to the equipment shall pass to Metra upon (1) arrival of the equipment and/or services at Metra's location; (2) joint inspection by the parties; and (3) completion and execution of Conditional or Final Acceptance. However, Metra shall not be responsible for, and Contractor shall retain all risk of loss or damage due to, equipment failure or failure due to design or workmanship deficiencies, as well as all damage caused by Contractor's negligence or willful misconduct. Contractor resumes the risk of loss any time it removes the equipment from Metra's possession and control for any actions prior to Final Acceptance. Transfer of risk of loss shall not be deemed to transfer title or to constitute conditional or final acceptance of the equipment and/or services.

1.8 DELIVERY

It is understood and agreed that time of delivery is of the essence of this contract. If the Contractor is delayed in the delivery of equipment or services purchased under the Contract by a cause beyond his control, it must immediately upon receiving knowledge of such delay, give written notice to Metra and request an extension of time for completion of the Contract. Metra will examine the request and determine if the Contractor is entitled to an extension. Metra will notify the Contractor of the decision in writing.

All materials shipped to Metra must be shipped F.O.B. destination. If prior delivery notification is specified, arrangements must be made by the Contractor with Metra's designated receiving location at least twenty-four (24) hours in advance to arrange for receipt of the materials. The material must then be delivered where directed and as agreed upon.

1.9 LIQUIDATED DAMAGES

1.9.1 Generally

Metra's need for equipment is of paramount importance to Metra's continuance of successful public service. Operating Metra's aging equipment increases capital costs, and thus Metra's need for reliable equipment increases over-time. For this reason and others, time is of the essence, and acceptance and operation of the equipment as scheduled is of vital importance to Metra. It is agreed that the liquidated damages described in this Contract shall not be construed and treated by the parties as imposing a penalty upon the Contractor and its sureties for failing to complete the work in a timely manner or to deliver the equipment as agreed, but as liquidated damages to compensate Metra for failure to deliver operable equipment within a planned schedule that complies with the Contract such that it is accepted for service (hereinafter sometimes referred to as acceptable equipment). Liquidated damages shall be assessed separately for each piece of equipment. Liquidated damages under this section are solely for damages arising out of the delay in delivery of acceptable equipment, and do not compensate Metra for damages for breach of warranty or other breach of this Contract to which Metra otherwise may be entitled, whether before or after termination of this Contract by Metra, including the extra costs of obtaining substitute equipment or performance from others. Payment of liquidated damages, and acceptance thereof by Metra, does not constitute a waiver or settlement of any claim for damages for such breaches (other than for delay in delivering acceptable equipment), and nothing in this section is intended to limit such claims.

1.9.2 Delivery and Acceptance Factor

The Contractor shall provide a schedule for Metra approval based on the requirements in the solicitation. In the event Contractor fails to deliver equipment such that it is accepted on or prior to the date provided for in the approved schedule pursuant to this purchase order, Contractor or its sureties shall pay agreed liquidated damages at the rate of five hundred dollars (\$500) per day per locomotive until the locomotive is Conditionally Accepted. Permitting the Contractor to continue to deliver equipment after the required delivery dates or any extended dates shall in no way operate as a waiver by Metra of its rights to liquidated damages.

1.9.3 Accrued Liquidated Damages

Metra may, but shall not be obligated to, deduct any liquidated damages payable to it from any money Metra otherwise owes or would owe Contractor. Liquidated damages are payable on Metra's demand. Additionally, Metra may, but shall not be obligated to, accept consideration in the form of additional quantities of Locomotives, parts, or other consideration. Liquidated damages for late delivery shall accrue over the term of the contract and shall be settled promptly thereafter, by wire transfer, unless Metra agrees to another form of payment. Liquidated damages will not exceed 20% of the Total Contract Price.

1.10 PAYMENT

1.10.1 General Payment Conditions

The amounts set forth in the price schedule are full compensation from Metra due Contractor for performance of this Contract. Contractor shall:

- Only accept orders accompanied by a Purchase Order from Metra.
- Provide timely invoicing for all purchases of products and services.
- Send all invoices to Accounts Payable and in contracts containing a Disadvantaged Business Enterprise Goal, include a copy to Metra's Office of Diversity of Civil Rights.
- Invoices must include:
 - The Purchase Order Number provided by Metra (see below for Release Notices).
 - The Item Number, as it corresponds to the Purchase Order, if applicable.
 - The Product Part Number.
 - A description of each Product or Service, as stated in the Purchase Order.
 - Itemized Quantity, Unit Price, and Invoiced Amount.
 - The Hours and Rates used, when applicable.
 - The Time Period covered by the invoice.
 - The Total Invoiced Amount for the invoice.
 - The Remit-To-Address.
- Invoices must be billed according to the Pricing Exhibits and include any required documentation.

Work not meeting the requirements of the Contract shall be made acceptable by Contractor, and unsuitable Work may be rejected by Metra, notwithstanding that payment for such Work may have been previously authorized and included in a progress payment. A deduction may be made from subsequent payments and withheld until such time as the correction of such unsuitable Work. The amount of the deduction will be set by Metra and the amount should be in proportion to the value of the non-conforming work.

1.10.2 Invoicing

All invoices received by Metra will be approved or rejected and returned by Metra within 60 days. In the event the invoice is not directed to Accounts Payable, Metra may take an

additional 30 days for handling. Metra will pay all invoices submitted in accordance with this Contract within 60 days of its approval of the Contractor's invoice. Metra may request corresponding back-up documentation to corroborate any invoices.

1.10.3 Grant Funded Invoicing

Notwithstanding the invoicing provisions above, Metra may withhold payment until grant funds are received by Metra. Withholding under this provision must not exceed one year from Metra's final date for payment under Section 1.10.2. .

If Contractor fails to invoice within two years of its providing equipment or services, Contractor bears the risk that grant funding may no longer be available to pay said invoices. If grant funding is withdrawn as a direct result of Contractor's performance under this Contract, Contractor will bear sole responsibility for its loss.

1.10.4 Prompt Payment to Subcontractors and Suppliers

The Contractor agrees to pay each Subcontractor and Supplier under this contract for satisfactory performance of its contract no later than 15 days from the receipt of each payment the Contractor receives from Metra. Any failure to comply with this section will be a material breach of this contract, and Metra reserves all its rights in law and equity for such breach. In addition, such breach will be consideration for the Contractor's responsibility status for future contracts with Metra. Any delay or postponement of payment from the above referenced time frame may occur only for good cause following written approval of Metra.

The Contractor agrees to return retainage payments to each subcontractor and supplier within 15 days after the Subcontractors and Suppliers work is satisfactorily completed. Any delay or postponement of payment from above referenced time frame may occur only for good cause following written approval of Metra.

Contractor's failure to promptly pay its Subcontractors is subject to the provisions of 50 ILCS 505/9.

1.10.5 Taxes

The Contract price shall not include, and Metra shall not pay, taxes or fees from which Metra is exempt. Metra is exempt from various federal taxes, all state and unit of local government taxes, and registration and license fees. Contractor shall promptly notify Metra, and afford it the opportunity before payment of any taxes, to contest said claims in the manner and to the extent it may elect, and to settle or satisfy such claims.

1.11 TITLE AND WARRANTY OF TITLE

The Contractor warrants that title to the equipment purchased will pass to Metra free and clear of all liens, claims, and encumbrances upon the first of either Metra's Conditional or Final Acceptance, and upon the associated payment.

The Contractor warrants that all articles of materials delivered hereunder shall be free from defect of material and workmanship and that all parts furnished will conform to samples, specifications and/or drawings as may be applicable, and will be fit for the purpose for which purchased. The

warranty period shall be for one (1) year, unless otherwise provided for in the Contract, from the date of delivery or date of final acceptance, whichever is later. Metra may return any nonconforming or defective items to the Contractor or require correction or replacement of the item at the time the defect is discovered, all at the Contractor's risk and expense. Acceptance of items by Metra or payment therefore shall not relieve the Contractor of its responsibilities hereunder.

1.12 LEGAL CLAUSES

1.12.1 Notices

Except as otherwise specified elsewhere in the Contract, all requests, notices, demands, authorizations, directions, consents, waivers, or other documents required or permitted under this Contract shall be in writing. Such communications shall be deemed to have been sufficiently served if sent by certified or registered mail with proper postage pre-paid, or hand delivered, or when received if sent by any other means, at the respective addresses shown below, or to such other address as either party may from time to time furnish to the other in writing.

If to Metra, a copy to both:

Metra
547 W. Jackson Blvd., 15th
Floor
Chicago, Illinois 60661
Attn: Chief Mechanical Officer

Metra
547 W. Jackson Blvd., 11th
Floor
Chicago, Illinois 60661
Attn: Contracting Agent

If to Contractor, to its address set forth on its offer.

1.12.2 Indemnification

To the full extent permitted by law, Contractor agrees to assume any and all risk and to indemnify, defend, and hold harmless Metra, RTA, and the Northeast Illinois Regional Commuter Railroad Corporation, and their respective directors, officers, employees, and agents (collectively referred to as "Indemnitees") from and against any and all claims, liabilities, losses, damages, demands, liens, encumbrances, judgments, awards, costs, suits, actions, proceedings, fees, expenses, and attorney's fees and other expenses of litigation or arbitration, which any of them may incur, sustain, or be subject to on account of:

- a) injury to, or death of any person; or property damage, arising out of the Contractor's performance of the Contract, or Contractor's failure to perform under the Contract, including, but not limited to, any contract warranty work;
- b) injury to, or death of any person; or property damage, arising out of the Contractor's use of Metra equipment, or arising out of any and all defects, or alleged defects, with respect to Metra equipment, regardless of whether the relevant Metra equipment, equipment materials, equipment design, or equipment workmanship was made or approved by Contractor, Subcontractor, or Supplier and regardless of any and all negligence on Metra's part in participating in the selection, purchase, or approval of relevant Metra equipment, equipment materials, equipment design, equipment workmanship, or equipment conditions; or

- c) injury to, or death of any person; or property damage, arising out of any and all misconduct, negligent acts, errors, or omissions of Contractor's officers, employees, servants, agents, Subcontractors, and Suppliers.
- d) any action that may be brought by Indemnitees to enforce the provisions of this indemnity.

Each party shall promptly notify the other in writing of the notice or assertion of such claim, demand, lien, encumbrance, judgment, award, suit, action, or other proceeding hereunder. The Contractor shall have sole charge and direction of the defense of such suit, action, or proceeding. Metra shall not make any admission that might be materially prejudicial to the Contractor unless the Contractor has failed to take over the conduct of any negotiations or defense within a reasonable time after receipt of the notice and authority above provided. Metra shall at the request of the Contractor furnish to the Contractor all reasonable assistance that may be necessary for the purpose of defending such suit, action or proceeding, and shall be repaid all reasonable costs incurred in doing so. Metra shall have the right to be represented therein by advisory counsel of its own selection at its own expense.

1.12.3 Indemnitee Gross Negligence or Willful Misconduct

The obligations of the Contractor under Section 1.12.2 shall not extend to circumstances in which the injury, death, or damages are caused solely by the gross negligence or willful misconduct of one or more of the Indemnitees.

1.12.4 Intentionally Omitted

1.12.5 Suspension of Work

Metra may, at any time and for any reason within its sole discretion, issue notice to the Contractor suspending, delaying, or interrupting all or any part of the Work for a specified period of time.

The Contractor shall comply immediately with any such written order and take all reasonable steps to minimize costs allocable to the Work covered by the suspension during the period of Work stoppage. Contractor shall continue the Work that is not included in the suspension and shall continue such ancillary activities as are not suspended. The Contractor shall resume performance of the suspended Work upon expiration of the notice of suspension, or upon written direction from Metra's Authorized Representative.

The Contractor shall be allowed an equitable adjustment in the Contract price (excluding profit) and/or an extension of the Contract time, to the extent that cost or delays are shown by the Contractor to be directly attributable to any suspension. However, no adjustment shall be made under this section for any suspension, delay, or interruption due to the fault or negligence of the Contractor. As soon as reasonably possible after receipt of the written suspension of work notice, the Contractor shall submit to Metra's Authorized Representative a detailed price and schedule proposal for the suspension, delay, or interruption.

1.12.6 Notice of Labor Dispute

Whenever the Contractor or Metra has knowledge that any actual or potential labor dispute is delaying or threatens to delay the timely performance of the Contract, they shall immediately give written notice thereof to the other party, including all relevant information.

In addition, the Contractor agrees to insert the substance of this clause in any subcontract in which a labor dispute may delay the timely performance of the Contract.

1.12.7 Force Majeure

If the Contractor is delayed at any time during the progress of the Work by a cause as described below, then the time for completion and/or affected delivery date(s) shall be extended by Metra subject to the following cumulative conditions:

1. Such cause may include force majeure events such as any event or circumstance beyond the reasonable control of the Contractor, including but not limited to acts of God; earthquake, flood, and any other natural disaster; civil disturbance, strikes, and labor disputes; fires and explosions; war and other hostilities; embargo; or failure of third parties, including Suppliers or Subcontractors, to perform their obligations to the Contractor due to a force Majeure event described above;
2. The Contractor demonstrates that the completion of the Work and/or any affected deliveries will be actually and necessarily delayed;
3. The Contractor has taken measures to avoid and/or mitigate the delay by the exercise of all reasonable precautions, efforts and measures, whether before or after the occurrence of the cause of delay; and
4. The Contractor makes written request and provides other information to Metra as described below.

None of the above shall relieve the Contractor of any liability for the payment of any liquidated damages owing from a failure to complete the Work by the time for completion that the Contractor is required to pay for delays occurring prior to, or subsequent to the occurrence of an excusable delay.

Metra reserves the right to rescind or shorten any extension previously granted, if subsequently Metra determines that any information provided by Contractor in support of a request for an extension of time was erroneous; provided, however, that such information or facts, if known, would have resulted in a denial of the request for an excusable delay.

Notwithstanding the above, Metra will not rescind or shorten any extension previously granted if the Contractor acted in reliance upon the granting of such extension and such extension was based on information which, although later found to have been erroneous, was submitted in good faith by the Contractor.

No extension or adjustment of time shall be granted unless: (1) written notice of the delay is filed with Metra within 14 calendar days after the commencement of the delay, and (2) a written application therefore, stating in reasonable detail the causes, the effect to date and the probable future effect on the performance of the Contractor under the Contract, and the portion or portions of the Work affected, is filed by the Contractor with Metra within thirty (30) calendar days after the commencement of the delay. No such extension or adjustment shall be deemed a waiver of the rights of either party under the Contract. Metra shall make its determination within thirty (30) calendar days after receipt of the application.

1.12.8 Termination for Convenience

Metra may terminate this contract, in whole or in part, at any time by written notice to the Contractor when it is in Metra's best interest. The Contractor shall be paid its costs, including contract close-out costs, and profit on work performed up to the time of termination. The Contractor shall in no less than 30 days unless otherwise approved by Metra, submit its termination claim to Metra to be paid the Contractor. If the Contractor has any property in its possession belonging to Metra, the Contractor will account for the same, and dispose of it in the manner Metra directs.

1.12.9 Termination for Breach

If the Contractor does not deliver equipment in accordance with the contract delivery schedule, or if the Contractor fails to comply with any other provision of the contract, Metra may terminate this contract for breach. Termination shall be effected by serving a notice of termination on the Contractor setting forth the manner in which the Contractor is in breach. The Contractor will only be paid the contract price for supplies delivered and accepted in accordance with the manner of performance set forth in the Contract in excess of Metra's actual or liquidated damages. Any such termination for breach shall not in any way operate to preclude Metra from also pursuing all available remedies against Contractor and its sureties for said breach.

Metra, prior to a termination for breach, will give notice allowing the Contractor an opportunity to cure. In such case, the opportunity to cure notice will state the time period in which cure is permitted and other appropriate conditions. Failure to abide by such notice, may in Metra's discretion, result in breach with no further cure opportunity.

If it is later determined by Metra that the Contractor had an excusable reason for not performing, such as a strike, fire, or flood, events which are not the fault of or are beyond the control of the Contractor, Metra, after setting up a new delivery of performance schedule, may allow the Contractor to continue work, or treat the termination as a termination for convenience.

1.12.10 Intentionally Omitted.

1.12.11 Waivers of Remedies for Any Breach

In the event that Metra elects to waive its remedies for any breach by Contractor of any covenant, term or condition of this Contract, such waiver by Metra shall not limit Metra's remedies for any succeeding breach of that or of any other term, covenant, or condition of this Contract.

1.12.12 Compliance with Laws and Regulations

The Contractor shall at all times observe and comply with all applicable statutes, ordinances, regulations and codes of the Federal, State, City, and other local government agencies, which may in any manner affect the performance of the Contract.

1.12.13 Changes of Law

Changes of law that become effective after the solicitation due date may result in changes that affect price. If a price adjustment is indicated, either upward or downward, then it shall be negotiated between Metra and the Contractor, and the final Contract price will be adjusted upward or downward to reflect such changes in law. Such price adjustment may be audited, where required.

1.12.14 Maintenance of Records; Access by Metra; Right to Audit Records

1.12.14.1 Records Retention

The Contractor will retain, and will require its Subcontractors and Suppliers of all tiers to retain, complete and readily accessible records related in whole or in part to the contract, including, but not limited to, data, documents, reports, statistics, sub-agreements, leases, subcontracts, arrangements, other third party agreements of any type, and supporting materials related to those records.

1.12.14.2 Retention Period

The Contractor agrees to comply with the record retention requirements in accordance with 2 C.F.R. § 200.333. The Contractor shall maintain all books, records, accounts and reports required under this Contract for a period of at not less than three (3) years after the date of termination or expiration of this Contract, except in the event of litigation or settlement of claims arising from the performance of this Contract, in which case records shall be maintained until the disposition of all such litigation, appeals, claims or exceptions related thereto.

1.12.14.3 Access to Records

The Contractor agrees to provide sufficient access to grantor and its contractors to inspect and audit records and information related to performance of this contract as reasonably may be required.

1.12.14.4 Access to the Site(s) of Performance

The Contractor agrees to permit grantor and its contractors access to the sites of performance under this contract as reasonably may be required.

1.12.15 Intentionally Omitted

1.12.16 Conflicts of Interest; Gratuities

The Contractor is prohibited from engaging in any practice that may be considered as a conflict of interest under existing Metra policies and/or state law, and to refrain from

participating in any gifts, favors or other forms of compensation that may be viewed as a gratuity in accordance with existing policies and laws.

The Contractor shall take all reasonable measures to preclude the existence or development of an organizational conflict of interest in connection with its performance. An organizational conflict of interest occurs when, due to other activities, relationships or contracts, a firm or person is unable, or potentially unable, to render impartial assistance or advice to Metra; a firm or person's objectivity is or might be impaired; or a firm or person has an unfair competitive advantage in proposing for award of a Contract as a result of information gained in performance of the Contract.

Members of the Board, officers and employees of Metra, their spouses, their children, their parents, their brothers and sisters and their children, are prohibited from having or acquiring any Contract or any direct pecuniary interest in any Contract which will be wholly or partially performed by the payment of any funds or the transfer of property of Metra. Any firm, partnership, association or corporation from which any member of the Board, officer or employee of Metra is entitled to receive more than seven and one-half percent (7 ½) of the total distributable income, is prohibited from having or acquiring any contract or direct pecuniary interest in any contract which will be performed in whole or in part by payment of funds or the transfer of property of Metra. Any firm, partnership, association or corporation from which members of the Board, officers, employees of Metra, their spouses, their children, their parents, their brothers and sisters and their children are entitled to receive in the aggregate more than fifteen percent (15%) of the total distributable income, is prohibited from having or acquiring any Contract or direct pecuniary interest in any Contract which will be performed in whole or in part by the payment of funds or the transfer of property of Metra.

1.12.17 General Nondiscrimination Clause

In connection with performance of the Contract, the Contractor agrees that it will not, on the grounds of race, religious creed, color, national origin, ancestry, disability, marital status, sex, sexual orientation, or age, discriminate or permit discrimination against any person or group of people in any manner prohibited by federal, state or local laws.

1.12.18 Modification of Contract; Waiver

1.12.18.1 Modification

Any modification or amendment of any provisions of any of the Contract Documents shall be effective only if in writing, signed by Authorized Representatives of both Metra and the Contractor, and specifically referencing the Contract.

1.12.18.2 Waiver

In the event that either party elects to waive its remedies for any breach by the other party of any covenant, term or condition of the Contract, such waiver shall not limit the waiving party's remedies for any succeeding breach of that or of any other term, covenant or condition of the Contract.

1.12.19 Remedies Not Exclusive

The rights and remedies of Metra provided herein shall not be exclusive and are in addition to any other rights and remedies provided by law.

1.12.20 Counterparts

The Contract may be executed in any number of counterparts. All such counterparts shall be deemed to constitute one and the same instrument, and each of said counterparts shall be deemed an original thereof.

1.12.21 Severability

Whenever possible, each provision of the Contract shall be interpreted in a manner as to be effective and valid under applicable law. However, if any provision, or part of any provision, should be prohibited or invalid under applicable law, such provision, or part of such provision, shall be ineffective to the extent of such prohibition or invalidating the remainder of such provision or the remaining provisions of the Contract.

1.12.22 Third Party Beneficiaries

No provisions of the Contract shall in any way inure to the benefit of any third party, including the public at large, so as to constitute such person a third-party beneficiary of the Contract or of any one or more of the terms and conditions of the Contract or otherwise give rise to any cause of action in any person not a party to the Contract, except as expressly provided elsewhere in the Contract.

1.12.23 Assignment of Contract

The Contractor agrees that neither this Contract nor any part of it or any of the monies due from this Contract may be assigned without the prior consent of Metra. Any successor or assignee under this Contract will be required to accede to all of the terms, conditions and requirements of this Contract as a condition precedent to such succession or assignment. Assignment of any portion of the work by subcontract must be approved in advance by Metra, in writing. Metra reserves the right to assign performance of all or part of the Contract as advertised, competed, evaluated, and awarded including base and option quantities.

1.12.24 Independent Parties

The Contractor is an independent contractor with respect to the performance under this Contract, retaining control over the detail of its own operations, and the Contractor shall not be considered the agent, employee, partner, fiduciary or trustee of Metra.

1.12.25 Survival

The following sections shall survive the nominal expiration or discharge of other Contract obligations, and Metra may obtain any remedy under law, Contract or equity to enforce the obligations of the Contractor that survive the manufacturing, warranty and final payment periods:

Intellectual Property
Data Rights

Indemnification
Governing Law and Choice of Forum
Disputes
Maintenance of Records; Access by Agency; Right to Audit Records
Confidential Information
Parts Availability Guarantee
Warranty and Reliability
Liquidated Damages

1.13 INTELLECTUAL PROPERTY

1.13.1 Intellectual Property Indemnification

The Contractor shall indemnify, defend and hold harmless Metra (and its officers, directors, agents or employees) to the maximum extent permitted by law from and against any and all claims, liabilities, losses, damages or expenses (including attorneys' fees and related costs, whether or not litigation has commenced), whether direct or indirect, arising out of, relating to or in connection with any claim or allegation that the ownership, possession or use of any software, , equipment, devices, processes or other materials provided by the Contractor under this Agreement infringe, misappropriate or violate the patent, copyright, trade-secret or other intellectual-property or proprietary rights of any third party. If any such software, equipment, devices, processes or other materials are held to constitute an infringement and their use enjoined (or if Metra reasonably determines that they are likely to be held to constitute an infringement and their use enjoined), then the Contractor, at the Contractor's sole cost and expense, shall do one of the following:

1. Secure for Metra the right to continue using the software, equipment, devices, processes, or other materials by suspension of the injunction or by procuring a royalty-free license, or licenses;
2. Replace such software, equipment, devices, processes, or other materials with non-infringing software, materials, equipment, devices, or processes; or
3. Modify them so that they become non-infringing.

If the amount of time necessary to proceed with one of these options is deemed excessive by Metra, then Metra may direct the Contractor to select another option or risk Metra terminating for breach.

Metra shall advise the Contractor of any pending patent suit related to the Contract against Metra and provide all information available. The Contractor's obligations under this section are discharged and Metra shall hold the Contractor harmless with respect to infringement caused by equipment or parts expressly specified by Metra if all requests for substitutes were rejected and the Contractor advised Metra of the potential infringement.

1.13.2 Intellectual Property Warranty

The Contractor represents and warrants that any use of the equipment, devices, processes or other materials provided by the Contractor under this Agreement, or any part thereof, by Metra (or its officers, directors, agents, employees or transit users) will not infringe,

misappropriate or violate the patent, copyright, trade-secret or other intellectual-property or proprietary rights of any third party.

The Contractor further represents and warrants that it has or will have all appropriate licenses, agreements or ownership rights pertaining to all patent, copyright, trade-secret or other intellectual-property or proprietary rights needed for the performance of its obligations under the Contract — including without limitation that it will have all necessary rights to use patentable or copyrightable materials, equipment, devices, or processes not furnished by Metra used on or incorporated in the Work under the Contract. The Contractor assumes all risks arising from the use of any such patented or copyrighted materials, equipment, devices or processes.

1.13.3 Tooling Rights

The Contractor, its Subcontractors, and Suppliers shall not sell, destroy, or otherwise dispose of their rights to the use of, the unique castings, patterns and forming or extrusion dies after their use in the production of the equipment without first offering them to Metra, with reasonable costs associated with the transfer to be borne by Metra, or, in the case of a proposed sale to another, without first offering them for sale to Metra at a fair market price. The Contractor shall be liable to Metra to the extent that the failure of the Contractor, its Subcontractors and Suppliers, to comply with this Section causes Metra to incur costs to have the tooling replicated.

For purposes of this Section the terms “sell” and “sale” shall not include transfer of these assets to a successor corporation or other entity that assumes the business and obligations of any Contractor, Subcontractor, Supplier or Manufacturer herein, including obligations arising under the Contract. Upon Contractor’s offer of any of the materials described above and Metra’s refusal, the Contractor’s obligation with regard to Tooling Rights, as it relates to the specific materials offered and refused, shall cease.

1.14 DATA RIGHTS

1.14.1 Proprietary Rights/Rights in Data

The Contractor hereby grants to Metra on behalf of itself and its Subcontractors, and Suppliers, (as to whom the Contractor represents and warrants that it has the power and authority to grant such sublicense), an irrevocable, perpetual, royalty-free, nonexclusive license and sublicense (“Technology License”) to use, itself or through its agents or assigns, for the approved purposes described below, without recourse to the original Contractor, Subcontractor, Supplier or Manufacturer all patented, copyrighted and unpatented technology, know-how, trade secrets and other proprietary rights, and documentation thereof which is included in the material and/or Equipment, including but not limited to all systems, subsystems, assemblies, subassemblies, components, software and interface systems and controls which are necessary for the operation, maintenance and repair, overhaul of the material and/or Equipment, and for the manufacture of parts which are unavailable for purchase, as defined below, all of which shall be designated the “Licensed Technology.”

1.14.1.1 Uses

Metra's rights under this Technology License shall be limited to its use for the following:

1. Evaluation and qualification for the purposes of future material and/or Equipment procurements of systems, subsystems and components of subsystems on the material and/or Equipment to be delivered under the Contract;
2. Preparation of specifications for future purchases employing some or all of the Licensed Technology;
3. Maintenance, repair, and refurbishment of the material and/or Equipment;
4. Overhaul of the material and/or Equipment;
5. Manufacture of parts for the material and/or Equipment that become unavailable for purchase. The term "unavailable for purchase" means that a part is no longer being manufactured; or an inventory of the part in sufficient quantities to meet Metra's needs is not available for purchase; or no supplier will sell a part to Metra or cannot supply the part according to a delivery schedule that meets Metra's needs; or that no supplier will offer the part at a commercially reasonable price. "Unavailable for purchase" can be demonstrated through a public solicitation receiving no adequate bids or proposals.

1.14.1.2 Limits

Metra shall not have the right under this Technology License either to use the Licensed Technology to manufacture itself, or to have manufactured for it by a third party as a sub-licensee of Metra, either the material and/or Equipment, systems, subsystems or components thereof, except as specified above.

1.14.2 Software Identification and Escrow Account

1.14.2.1 Software Identification

The Contractor warrants that Exhibit 1.14.2 to the Contract sets forth a true and complete list of all software which is or may be included in the material and/or Equipment or which is necessary for the operation, maintenance and repair, overhaul of the material and/or Equipment ("Required Software") and accurately identifies whether such Required Software is (i) off-the-shelf software (including shrink-wrap or click-wrap end user licenses for mass market software) that is commercially available under non-discriminatory pricing terms on a retail basis for less than Five Hundred Dollars (\$500) per seat or less than Twenty Thousand Dollars (\$20,000) on an enterprise license basis ("Off-the-Shelf Software"), (ii) software owned the Contractor or licensed by the Contractor under terms which allows Contractor to sublicense such software to Metra pursuant to the Technology License set forth above (collectively, "Proprietary Licensed Software") (it being acknowledged that all Proprietary Licensed Software is being licensed by the Contractor to Metra under the terms of the Technology License set forth above), and (iii) software comprising proprietary works of third parties which does not qualify as Off-the-Shelf Software or Proprietary Licensed Software ("Proprietary

Third Party Software”). Prior to commencement of performance under this Agreement (or earlier, at Metra’s written request), the Contractor shall provide Metra with copies of any license documentation that may be necessary for Metra to execute in order to utilize the Proprietary Third Party Software and shall, to the extent requested by Metra, assist Metra in connection with the negotiation of such license documentation. At Metra’s written request, the Contractor shall provide Metra with copies of all license documentation that may be necessary for Metra to accept with respect to any Off-the-Shelf Software and, if the terms of such license documentation are unacceptable to Metra, the Contractor will identify substitute Off-the-Shelf Software to be used in lieu of the unacceptable Off-the-Shelf Software.

1.14.2.2 Software Escrow

Source code for the Proprietary Licensed Software and Proprietary Third Party Software (collectively, the “Proprietary Software”) and all related documentation required for the use and modification thereof, and any revisions or derivative works based on the Proprietary Software developed pursuant to the Contractor’s performance of the Contract (collectively, “Escrow Materials”) shall be deposited in an escrow account with a third party for no less than forty (40) years. The Contractor shall pay all initial and future costs related to the escrow account. The Escrow Materials shall immediately be obtainable and usable by Metra (i) in the event that Contractor fails to support the continued use of the Proprietary Software by Metra, (ii) Metra certifies that it requires access to the source code of such Proprietary Software in order to perform maintenance, repair or refurbishment of the material and/or Equipment; or (iii) upon termination or expiration of the term of the escrow.

1.15 CHANGES

1.15.1 Contractor Changes

If the Contractor chooses to propose changed scope, then the Contractor must submit a notice of proposed change to Metra for its prior written approval. The notice should describe the proposed change, identifying the proposed change and stating the reasons for the change, including relevant circumstances, impacts on the schedule, and estimated cost impacts.

Upon receipt of the proposed change notice, Metra may choose to either reject the notice or to request Contractor to submit a detailed Proposal within a specified time period. If Metra accepts the proposed change notice, it may issue an Interim Change Notice specifying the proposed change and action that the Contractor should undertake. The Interim Change Notice may include a not-to-exceed amount for the change based upon the Contractor’s estimate. If Metra requests a proposal, then the Contractor’s proposal shall set forth any changes to the Total Contract Price, including, if applicable, a line item breakdown and per unit increases, Contract delivery schedule, and/or any technical requirements of the Contract.

Any Interim Change Notice issued by Metra must be formalized in a written Change Order approved by the Agency. Oral Change Orders are not permitted.

The Contractor shall be liable for all costs resulting from, and/or for satisfactorily correcting, any specification change not properly ordered by written modification to the Contract and signed by the Metra's Authorized Representative.

1.15.2 Metra Changes

Metra may obtain changes to the Contract by notifying the Contractor.

Metra may issue an Interim Change Notice specifying the proposed change and action that the Contractor should undertake. Upon receipt of the Interim Change Notice and as soon as reasonably possible, but no later than thirty (30) calendar days, or a date agreed to by the parties, the Contractor shall submit to Metra's Authorized Representative a detailed price and schedule proposal for the Work to be performed. The Contractor's proposal shall set forth any changes to the Total Contract Price, contract delivery schedule, or any technical requirements of the Contract. This Proposal shall be accepted or modified by negotiations between the Contractor and Metra's Authorized Representative. At that time, a Change Order shall be executed in writing by both parties. Disagreements that cannot be resolved within negotiations shall be resolved in accordance with the Disputes clause. Regardless of any disputes, the Contractor shall proceed with the Work ordered.

Oral Change Orders are not permitted.

1.15.3 Claims

1.15.3.1 Notice of Intent to Claim

The Contractor shall give to Metra a written notice of Intent to Claim within fifteen (15) calendar days after the parties have been unable to negotiate a pending change related to any act or event for which it intends to seek adjustment in the contract price, contract time, terms, or schedule. The notice shall set forth the basis of the claim and an estimate of any costs and time impacts involved.

The written notice of Intent to Claim shall set forth the following:

1. The reasons the Contractor believes additional compensation and/or allowance of additional time may be due;
2. The nature of the costs involved or time needed;
3. The Contractor's plan for mitigating such cost and delay; and
4. The Contractor's best estimate of the amount of potential claim and time extension, and basic facts supporting the amount and time claimed.

1.15.3.2 Claim Submittal

The Contractor shall submit its claim within thirty (30) calendar days after submitting the Notice of Intent to claim. The following must be provided with the Claim:

1. Detailed factual statement of the claim, with all necessary facts, events, locations, and affected Work.
2. Date of the event giving rise to the claim; if there are continuing or multiple events, provide all dates necessary to support the claim.
3. Names of all persons who made any statements with respect to, or are knowledgeable of, the facts and events giving rise to the claim.
4. Specific provisions of the Contract supporting the claim, with a statement of supporting rationale.
5. Identification of all documents including meeting minutes, transcriptions of oral communications, photographs, videos, tapes, and any other evidence supporting the claim.
6. Detailed analysis of a request for an extension of item.
7. Detailed breakdown of request for additional compensation.

Failure to submit sufficient detail to permit Metra to conduct a review of the claim may result in rejection of the claim.

Each claim the Contractor submits for an adjustment that is related to a delay for any cause shall include the following:

1. A time impact analysis and a revised schedule demonstrating how the delay is incorporated into the schedule;
2. Alternative proposal(s) and a revised schedule that demonstrate how the delay will be eliminated or mitigated.

The Contractor shall maintain cost records of all Work, which is the basis of any claim, in the same manner as is required for Changed Work in the Changes clause of this agreement.

1.15.3.3 Claims Process

Within 30 calendar days after the receipt of the claim, Metra shall either render a decision, provide an estimated date when a decision will be made, or request that the Contractor submit additional information and details to establish the facts and contentions involved in the claim.

If Metra does not make a decision within 30 days after it receives all information required to evaluate the claim, or within any extended period mutually agreed to in writing by the parties, the claim shall be deemed rejected by Metra, and the Contractor shall be notified in writing. If the Contractor fails to comply with any provision of this Article in the time and manner specified, it shall waive any relief that might otherwise be due with respect to such claim.

Metra may at its discretion, unilaterally or in agreement with the Contractor, make payments or grant extensions of time on any part of a claim it determines to have been substantiated to its satisfaction. If the Contractor agrees to a final payment or

extension of time related to a certain, described portion of its claim, such agreements shall constitute an unconditional release of Metra from any further obligations related to that described portion of the claim.

If Metra finds the claim to have merit, in whole or in part, then Metra and Contractor will negotiate the terms of a Change Order in the Work in compliance with the Changes clause. If the Contractor and Metra are unable to reach agreement on a Change Order, then Metra may issue a unilateral Change Order. The unilateral Change Order shall constitute a final decision by Metra.

If any claim or portion thereof remains in dispute following a final decision by Metra, then the Contractor may pursue further resolution through the Disputes clause.

Pending final resolution of a claim, the Contractor shall proceed diligently with the performance of its obligations under the Contract in accordance with the written directions of Metra.

1.15.3.4 No Claims after Final Payment

In no event shall any claims be made after Final Payment. Failure by the Contractor to submit claims in a timely manner shall result in a waiver by the Contractor as to such claims.

1.15.4 Disputes

Except as otherwise provided in the Contract, any dispute concerning a question of fact arising under or related to the Contract that is not disposed of by agreement shall be decided in accordance with the following steps. However, by mutual agreement the matter may be taken immediately to any higher step in the dispute resolution process, or mutually agreed-to alternative dispute resolution process (which may include structured negotiations, mediation or arbitration) or litigation. Pending final resolution of a dispute hereunder, the Contractor shall proceed diligently with the performance of the Contract and in accordance with Metra's decision, as the case may be.

Notice of Dispute. All disputes shall be initiated through a written dispute notice submitted by either party to the other party within fourteen (14) calendar days of the determination of the dispute.

Negotiation between Authorized Representatives. The parties shall attempt in good faith to resolve any dispute arising out of or relating to the Contract promptly by negotiation between individuals who have authority to settle the controversy and who are at a higher level of management than the people with direct responsibility for administration of the Contract. Any party may give the other party written notice of any dispute not resolved in the normal course of business as provided. Within fourteen (14) calendar days after delivery of the dispute notice, the receiving party shall submit to the other party a written response. The dispute notice and written response shall include: (1) a statement of the party's position and a summary of the arguments supporting that position; (2) any evidence

supporting the party's position; and (3) the name of the individual who will represent that party and of any others who will accompany the executive in negotiations. Within twenty-eight (28) calendar days after delivery of the dispute notice, the Authorized Representatives of both parties shall meet at a mutually acceptable time and place, and thereafter as they reasonably deem necessary, to attempt to resolve the dispute. All reasonable requests for information by one party to the other shall be honored.

Referral to executive management. If the matter has not been resolved by the Authorized Representatives within twenty-eight (28) calendar days of the dispute notice, then the dispute may be referred to executive management to settle the dispute and who shall likewise meet to attempt to resolve the dispute. Should the dispute not be resolved by negotiation between Authorized Representatives, Metra's Authorized Representative shall submit a written request for decision to the Metra's Executive Officer along with all documentation and minutes from the negotiations. The Executive Officer shall issue a written decision within fourteen (14) calendar days or a date mutually agreed upon receipt of a request. Within thirty (30) calendar days of the issuance of any administratively final and conclusive decision under this paragraph, the Contractor shall notify in writing of the Contractor's agreement with the final decision. Any dispute that is not resolved by the parties through the operation of the provisions of this paragraph, or any mutually agreed-upon alternative disputes resolution process pursuant, may be submitted to any court in Circuit Court of Cook County, Illinois. Pending final resolution of a dispute hereunder, the Contractor shall proceed diligently with the performance of its obligations under the Contract in accordance with the written directions of Metra.

Alternative dispute resolution. If agreed to by both parties, disputes may be resolved by a mutually agreed-to alternative dispute resolution process that may include structured negotiations different from above, such as mediation or arbitration.

1.16 ILLINOIS FREEDOM OF INFORMATION ACT (FOIA)

1.16.1 Generally

Metra is subject to the Illinois Freedom of Information Act (FOIA), 5 ILCS 140/1 *et seq.* Contractor should assume any materials provided to Metra will be subject to public disclosure. Under FOIA, Metra may exempt trade secrets and commercial or financial information marked as proprietary, privileged or confidential, if such disclosure of the information would cause competitive harm to the Proposer and only as the claim directly applies to the records requested. To the extent Contractor provides Metra records it believes are subject to this provision, it must clearly mark the header or footer of each page of the applicable material as "confidential." If Metra agrees the exemption is applicable, it will withhold the material unless and until it is directed to disclose the information pursuant to law, a court order, subpoena, or decision from the Illinois Attorney General.

1.16.2 Confidential Information

Metra shall employ sound business practices no less diligent than those used for Metra's own confidential information to protect the confidence of all licensed technology, software, documentation, drawings, schematics, manuals, data and other information and material

provided by the Contractor pursuant to the Contract that are marked in accordance with Section 1.16.1, to protect against disclosure of such information and material to third parties except as permitted by the Contract and required under law. The Contractor shall be responsible for ensuring that confidential commercial or financial information, trade secrets or proprietary information, bears appropriate notices as described above.

During the performance of the Work under the Contract, it may be necessary for either party (the “Discloser”) to make confidential information available to the other party (the “Recipient”). The Recipient agrees to use all such information solely for the performance of the Work under the Contract and to hold all such information in confidence and not to disclose same to any third party without the prior written consent of the Discloser. Likewise, the Recipient agrees that all information developed in connection with the Work under the Contract shall be used solely for the performance of the Work under the Contract, and shall be held in confidence and not disclosed to any third party without the prior written consent of the Discloser.

1.17 AMERICANS WITH DISABILITIES ACT

The Contractor agrees to comply with, and assure that any subcontractor complies with all applicable requirements of 42 USC 12101 et seq.

1.18 APPROPRIATION

Consistent with Metra’s enabling statute, if this Contract is for a period of longer than one year, it is subject to the appropriation of funds by Metra’s Board of Directors for each year beyond the first year of the Contract.

1.19 CERTIFICATIONS

As a Condition of award the Contractor and all Subcontractors executed a set of certifications provided by Metra attached in Appendix A. Metra conditioned award of this Contract on the veracity of the executed certifications. If it is discovered that the Contractors’ certificates were false at the time of execution, Metra may terminate the Contract and require Contractor reimburse Metra for its costs in identifying and selecting a replacement contractor. In the event a Subcontractors’ certificates were false at the time of execution, Metra may require Contractor replace the Subcontractor at no additional cost to Metra.

1.20 INSURANCE REQUIREMENTS

1.20.1 Requirements

Requisition Number: PR0177045

Event: Passenger All-Electric Locomotives

Effective concurrently with the commencement of the Work, the contractor/vendor shall obtain and maintain throughout the life of the work, the insurance coverage as noted here. With the exception of Products Liability, all coverage needs to be written on an occurrence form. All insurers must carry an AM Best Rating of A-/VII or better.

TYPE OF COVERAGE	AMOUNT REQUIRED
1. WORKERS COMPENSATION: a. Coverage A – Statutory b. Coverage B	\$ 1,000,000 Limits of Liability
2. COMPREHENSIVE GENERAL LIABILITY (BROAD FORM): Bodily Injury Liability & Property Damage Liability (combined)	\$ 10,000,000 Each Occurrence \$ 10,000,000 Aggregate
3. EXCESS COMPREHENSIVE GENERAL LIABILITY-EXCESS OF PRIMARY LIMITS (1), (2), and (4) Bodily Injury Liability & Property Damage Liability (combined)	\$ 10,000,000 Each Occurrence \$ 10,000,000 Aggregate
4. AUTOMOBILE LIABILITY: Bodily Injury Liability & Property Damage Liability (combined)	\$ 1,000,000 Combined Single Limit
5. PRODUCTS LIABILITY	\$ 10,000,000 Each Occurrence \$ 10,000,000 Aggregate

Additional Insureds shall be as follows: The Commuter Rail Division of the Regional Transportation Authority, a division of an Illinois municipal corporation, and its affiliated separate public corporation known as the Northeast Illinois Regional Commuter Railroad Corporation, both operating under the service mark Metra as now exists or may hereafter be constituted or acquired, and the Regional Transportation Authority, an Illinois municipal corporation.

All policies must:

1. Include a waiver of subrogation, thereby waiving Contractors' rights of subrogation against Metra and any additional insureds.
2. Include the Additional Insured Endorsement for all coverages including products and completed operations.
3. Be primary and non-contributory on all coverages.

4. All deductibles applicable to the insurance coverage shall be borne by the contractor/vendor. ~~The certificate of insurance shall clearly state how defense costs, also known as “allocated loss adjustment expenses,” shall apply in terms of the deductible and the insurance limits.~~ Self-insurance reserve programs are prohibited, unless approved by Metra’s Risk Management Department.
5. All Subcontractors retained or hired for the Work shall be required to maintain limits and term equivalent to those required of the prime contractor.

Should any of the above described policies be canceled before the expiration date thereof, notice will be delivered in accordance with the policy provisions. Contractor/Vendor will immediately notify Metra of the cancellation, non-renewal, material change or reduction in coverage of any required insurance policy. Such notice shall be sent certified mail to Metra, care of the Director of Risk Management, 547 W. Jackson, Suite 1500, Chicago, IL 60661.

In no event shall the failure by Metra to receive certificates of insurance required hereunder, or to receive them by the date(s) required hereunder, be construed as a waiver of the contractor/vendor’s obligation to obtain the required insurance coverages. Failure by Metra to demand any certificate of insurance or other evidence of full compliance with the insurance requirements set forth herein, or failure by Metra to identify a deficiency in the evidence provided, shall not be construed as a waiver of the obligation to procure or maintain the insurance required hereunder. The acceptance of delivery by Metra of any certificate of insurance does not constitute approval or agreement that the insurance requirements have been met or that the insurance policies identified in the certificates of insurance are in compliance with such requirements.

1.20.1.1 Commercial General Liability Insurance

The Commercial General Liability policy shall include the following coverage limits when limits are indicated:

\$10,000,000	per occurrence
\$10,000,000	aggregate
\$10,000,000	aggregate for completed operations and products liability

1.20.1.2 Automobile Liability Insurance

The Automobile policy shall include the following additional coverage limits:

Include all autos owned by the contractor/vendor as well as hired and non-owned autos used by the contractor/vendor and autos used by the contractor/vendors’ employees while on Metra property.

\$25,000	for Medical Payments
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\$1,000,000	for Property Damage (if not combined in single limit)
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1.20.1.3 Workers Compensation and Employers Liability Insurance

Workers Compensation Insurance coverage should be at statutory limits.

As a minimum, the Employers Liability policy shall include coverage limits of:

\$1,000,000	for bodily injury by accident
\$1,000,000	for bodily injury by disease, each employee
\$1,000,000	Aggregate liability

2 SPECIAL CONDITIONS

2.1 TERM AND ORDER PROCESS

This Contract shall remain effective for all services described herein for a period of 96 months from the date Metra issues NTP. The Contractor agrees to complete each phase of the Work in accordance with the schedule and timelines described within this Contract. The Contractor shall complete production of all locomotives within 48 months of the date Metra issues NTP.

The Contractor shall supply a minimum of five (5) and up to a maximum of twelve (12) all-electric passenger locomotives and the specified parts in accordance with the Specification M-25-002. The first unit of the base order shall be conditionally accepted within 36 months of NTP and the final unit no later than 48 months after NTP.

2.2 PAYMENT AND PERFORMANCE BONDS

Both a labor and material payment bond, and a performance bond shall be provided under this Contract, prior to NTP, each individually in the amount of one hundred (100%) of the base order total. Additional bonds, in the amount of one hundred (100%) of each option, shall be provided within thirty (30) days of Metra exercising an option. The surety on each bond must be responsible for one hundred percent (100%) of damages up to one hundred percent (100%) of the total. For any increase in the actual contract price through the duration of the contract, as amended, additional bonding in the amounts stated above must be provided within thirty (30) days' notice from Metra for Metra's review and approval. The surety must be on the most recently published Department of the Treasury's Listing of Approved Sureties (Department Circular 570) throughout the contract, and the surety will be required to assure, in writing, performance of the Contract. Additionally, any attorney-in-fact who signs any bond must attach to that bond an effective copy of his/her power of attorney, as well as a Jurat page. The acceptable bond forms are **attached herein (Section 5, Exhibit VIII)**, ~~the February 1970 Edition of AIA Document A311, Performance Bond, and Labor and Material Payment Bond.~~

Unless otherwise agreed, the bonds shall be continuously in effect until completion of all of Contractor's obligations.

The Contractor's sureties shall be jointly and severally liable under its performance bond to Metra in the event that the Contractor shall breach any of its obligations under this Contract. Contractor acknowledges and agrees that for purposes of this Contract Metra shall not be deemed a merchant pursuant to the Uniform Commercial Code Section 2104.

2.3 DELIVERY AND ACCEPTANCE

2.3.1 Generally

The contractor bears full responsibility for all costs for transport of locomotives to Metra, as well as for spare parts or components, training materials, manuals, and any related materials shipped to Metra's designated destination.

The contractor will use good-faith efforts to effectively manage third-party transportation with a carrier on a daily basis for locomotives destined for Metra. Contractor shall update Metra on a daily basis with respect to movement of locomotives.

2.3.2 Pre-Shipment Inspection and Fitness for Delivery

A Fitness for Delivery certificate will be issued for each locomotive once it has successfully undergone pre-shipment inspection and testing through a Metra approved procedure. All non-conformities shall be addressed prior to shipment and the locomotive history book shall be complete and ready for review and approval by Metra or its designated representative. The Pre-Shipment Inspection report shall be forwarded to Metra and shall be recorded in the Vehicle History Book.

2.3.3 Notice of Arrival

On arrival, each locomotive will be carefully inspected by representatives of Metra, the Contractor, and the carrier for damage, loss, vandalism, or other discrepancies incurred during shipping. The Contractor will be responsible for resolution of any noted issues prior to Metra issuing a notice of arrival and before the locomotive will be allowed to undergo testing. Any generated report and resolution shall be included in the Vehicle History Book.

2.3.4 Operational Testing

After the notice of arrival, each locomotive will undergo operational performance tests. Testing will consist of shop testing the locomotive's subsystems and track testing with all subsystems operating. If Metra determines, in its sole discretion, that the locomotive does not pass one, all, or any combination of tests, Metra shall issue the Contractor a notice of rejection for the locomotive listing the items to be remedied or repaired.

2.3.5 Conditional Acceptance

In lieu of a notice of rejection, Metra may issue Conditional Acceptance where the locomotives may, in Metra's sole discretion, operate in supervised revenue service.

2.3.6 Final Acceptance

Final Acceptance will be issued when all initial corrective actions and any retrofits have been fully completed in response to any remaining Open Item(s), successful operational test runs have been completed, and the vehicle is considered to be fully compliant with the Contract by Metra and consequently ready to be released for general revenue service.

2.4 PARTS AVAILABILITY

The Contractor agrees to continuously offer to supply, either directly or through a designated source, within a commercially reasonable period of time in the case of each part ordered, the spare parts and customer-accessible software necessary to maintain and repair the locomotives supplied under this Contract, at the then-current or last published in Contractor's catalogs, price list, or other general sales materials, for a period of forty (40) years after the date of the Final Acceptance of the last locomotive; provided, however, that if Contractor discontinues the general distribution of such part, it shall notify and give Metra the opportunity to make a one-time buy of its requirements. Parts shall be interchangeable with the original equipment.

On receipt of Metra's notice that Contractor has failed to comply with this section, then the Contractor shall provide Metra, within eight (8) hours of Metra's verbal or written request, the original suppliers' and/or manufacturers' part numbers, company names, addresses, telephone numbers, and contact persons' names for all of the specific parts not received by Metra so that Metra may attempt to produce or make such parts, and Contractor shall be responsible to Metra for the damages caused by Contractor's, its Subcontractors', or Suppliers', breach of this provision during performance of the Contract, including the subsequent warranty periods. In addition, Contractor must provide to Metra, for such production and within seven (7) days of Metra's verbal or written request, the design plans, manufacturing location, and documentation necessary for those parts manufactured by the Contractor and the original suppliers' and/or manufacturers' part numbers, company names, addresses, telephone numbers, and contact persons' names for all of the specific parts not received by Metra. Contractor hereby grants to Metra an irrevocable license to use the Contractor's design and manufacturing documentation for the purpose of Metra procuring parts for the locomotives agreed to under this Contract and for no other purpose.

2.5 WARRANTY AND RELIABILITY

2.5.1 General Warranties

- 1) The Contractor warrants that, at the time of acceptance, all locomotives, equipment, Work, components and parts, (including and without limitation and as an example, data, manuals, and reliability information), furnished under the Contract shall be:
 - a. In full conformance with all requirements of all provisions of the Contract;
 - b. Free of any and all defects and Deficiencies;
 - c. Fit for their particular purpose;
 - d. Fit for the ordinary purposes for which such locomotives, equipment, Work, components and parts are used;
 - e. Free from any and all liens and other encumbrances;
 - f. Component data or information of the latest configuration employed by the Contractor, Subcontractor, or Supplier in commercial service;
 - g. Accurate, complete, and current.
- 2) The Contractor further warrants that, for the periods of time defined in this Section 2.5, all locomotives, equipment, Work, components and parts shall be, remain and perform free of any and all deficiencies, and shall be, remain and perform in full conformance with all requirements of all provisions of the Contract, and all warranties which extend to the future performance of each of such items.

- 3) Warranties By Others: All warranties and guarantees of any Subcontractor, or Supplier with respect to any locomotives, equipment, Work, components or parts, whether expressed or implied, are deemed to be for the benefit of Metra and to be obtained by the Contractor for the benefit of Metra, regardless of whether or not such warranties and guarantees have been transferred or assigned to Metra by separate agreement. The Contractor shall enforce such warranties and guarantees on behalf of Metra; provided, however, that if directed by Metra, the Contractor shall require such Subcontractors, and Suppliers to execute such warranties and guarantees directly to Metra. The Contractor shall be jointly and severally liable for any such warranties or guarantees. To the extent that any such warranty or guarantee would be voided by reason of the Contractor's negligence in incorporating any equipment, component or part into the Work, the Contractor shall be responsible, at its sole cost, for correcting such error or omission, without cost or expense to Metra.
- 4) Equipment failures or performance deficiencies due to breach of the Contractor's or third party warranties described above is referred to in this Contract as a "Deficiency."

2.5.2 Availability and Reliability Warranty

- 1) Availability is defined as the ability of the locomotive to be assigned to a train at the commencement of the calendar day, following the calendar day inspection pursuant to 49 CFR Part 229.21, with no defects found that prevent the locomotive from being dispatched. Reliability is defined as the ability to complete the train assignments of the calendar day without locomotive failure or degradation of performance such that it causes a train or trains to lose time or result in a schedule delay.

A locomotive delay is defined as a locomotive related, mechanical failure causing a revenue service train to be more than 5 minutes late at its destination terminal; or annulled either at its originating point or en route.

- 2) In addition to the other warranties provided under this Contract, the Contractor further warrants the availability and reliability of the locomotives, equipment, components, Work and parts in accordance with the Contract availability and reliability requirements set forth below. Failure to meet the Contract availability or reliability requirements shall also constitute a "Deficiency", and Contractor shall, at its sole cost and without cost or expense to Metra, take all actions required to correct as promptly as possible the Deficiency and to achieve the specified availability and reliability requirements. In cases where a "Fleet Deficiency" exists, the Contractor shall incorporate at its sole cost such correction into all previously delivered locomotives, equipment, components, Work and parts before it may resume deliveries of new locomotives or affected

components. Such correction shall be incorporated into all undelivered locomotives, equipment, components, Work and parts prior to delivery.

- 3) The anticipated availability is 97% exclusive of days when a locomotive is undergoing periodic inspection, programmed maintenance, or is out of service for any reason other than mechanical failure, as determined by Metra.
- 4) The anticipated reliability is 98% for a locomotive that is dispatched, from time of dispatch until the next calendar day inspection, at which time it becomes again subject to the availability target. This requirement is applicable only to mechanical failures, as determined by Metra.
- 5) Achievement of reliability targets will be calculated by dividing the number of days that each locomotive was available for service in any 92 day Federal Railroad Administration (FRA) inspection period into the number of days or part of a day that the locomotive became unavailable due to a failure. For example, if the locomotive was available for service for 88 days between inspections and periodic maintenance, but failed after entering service on 2 days, the reliability rate is 98%, calculated by dividing 86 days by 88 days.

2.5.3 Time Periods of the Warranties

Basic Warranty: The warranty period will commence on Conditional Acceptance, unless there are Open Items. The warranty period as to each locomotive or any part or subsystem relating to an Open Item shall not commence until all Open Items have been corrected to Metra's satisfaction. The warranty period shall be effective for a time period of three (3) years (except as extended elsewhere in the Contract) after such Conditional Acceptance. The warranty for Special Tools, as defined in the technical specifications, including, without limitation, Diagnostic and Test Equipment shall be for a time period of three (3) years after Final Acceptance by Metra. For any locomotive or component that is **not** Conditionally Accepted, the warranty shall commence on the date of Final Acceptance.

- 1) Warranty for Certain Components: Warranties shall commence upon Acceptance as provided in the Paragraph herein entitled Basic Warranty, but shall have time periods as follows:
 - a. The warranty on modifications to the carbody structure, underframe, truck frames, and the exterior coating and painting shall be for five (5) years.
 - b. The warranty on the gear units, traction motors, rotating electrical equipment, batteries, and braking equipment shall be for four (4) years.

- c. The warranty on any component that Metra designates prior to Contract award as being non-service proven shall be for five (5) years.
- 2) Subcontractor Warranties: Any warranty from a Subcontractor or Supplier or manufacturer to the Contractor, which exceeds the above time periods, shall be extended to Metra for the same time period as given to the Contractor.

2.5.4 Warranty Notice

Metra will provide the Contractor with notice of breach of any warranty, including, without limitation, notice of a Deficiency, within a reasonable time after Metra observes and verifies any failure, malfunction, or condition of, any locomotive, equipment, Work, component or part, that the failure, malfunction or condition arises from a Deficiency or other breach of warranty existing or occurring within any of the applicable warranty periods ("Notice").

2.5.5 Corrective Work Requirements

- 1) Promptly upon receipt of notice from Metra, but in any event not later than forty-eight (48) hours thereafter, unless Metra agrees to a longer interval, the Contractor, at its sole cost, and without cost or expense to Metra, shall commence and thereafter prosecute with due diligence using qualified personnel, all activities necessary to investigate, analyze, diagnose and determine the cause and extent of the Deficiency or other breach of warranty, and the proper correction action, in conformance with the provisions of this Contract and shall promptly report the causes, extent and proposed corrective action to Metra in writing.
- 2) Promptly upon the approval of Metra, the Contractor, at its sole cost, and without cost or expense to Metra, shall commence and thereafter prosecute with due diligence, using qualified personnel, appropriate action, within the time period and in the manner provided for in this section to correct the Deficiency. Corrective action shall include without limitation, adjustment, repair, replacement, reengineering and redesign as appropriate to fully and completely address and remedy the Deficiency or other problem in each affected locomotive, equipment, Work, component or part, so that the item and the locomotive shall perform as specified by the Contract, and to ensure that the Deficiency will not recur. The Contractor shall promptly and diligently pursue all corrections to their complete, satisfactory conclusion. All corrections shall comply with all requirements of the Contract and shall not result in any locomotive, equipment, Work, component or part failing to comply with any requirement of any provision of the Contract. All corrections shall employ and require only parts that perform comparably to that originally intended by the Contract, and of cost comparable to the cost of the deficient part prior to correction. The Contractor shall perform, at its sole cost, any tests that Metra may reasonably require to verify that any

correction made by the Contractor will correct the Deficiency and that the correction will comply with all requirements of the Contract.

- 3) All corrections shall be without cost or expense to Metra. All costs and expenses of any correction shall be at the Contractor's sole cost. Contractor shall also bear all costs and expenses of removal, replacement and reinstallation and testing of other equipment, components, Work and parts necessary to gain access to the Deficiency or to accommodate the correction. The Contractor shall also bear all transportation costs for or associated with any Deficiency or correction.
- 4) The Contractor shall provide, at its sole expense and at no cost or expense to Metra, all facilities and equipment necessary to carry out the investigations, analyses and diagnoses needed to determine the cause and extent of the Deficiency or other breach of warranty, and to complete all correction thereof and all associated Work.
- 5) The Contractor shall promptly provide to Metra, without cost or expense to Metra, all updated parts manuals and maintenance manuals that include all information related to any correction.
- 6) The Contractor shall reimburse Metra for all Metra costs and expenses reasonably incurred in the investigation, analysis, diagnosis or correction of any Deficiency.
- 7) The Contractor shall be solely liable for any and all injury, loss or damage to any person, or to any locomotive, equipment, Work, component or part, or other Metra property, caused by any Work performed to make any correction.
- 8) In addition to correction of any Deficiency, the Contractor, at its sole cost, shall correct without cost or expense to Metra any other locomotive, equipment, component, Work or part that was caused to be damaged or adversely affected by a Deficiency.
- 9) All corrected components and parts used, and repairs made, to correct deficiencies shall be subject to acceptance by Metra and shall be subject to the same requirements as are set forth in the Contract for the original components.
- 10) If a correction hereunder has required the Contractor to reengineer or redesign a component, the Contractor shall, without cost to Metra and at Contractor's sole cost, replace all Metra owned spare parts comprising that component with the corrected items or detail parts.

2.5.6 Fleet Deficiency Remedy

- 1) A Fleet Deficiency exists when during the warranty period specific repairs, replacements, or modifications are necessitated by defects in design, material, or workmanship of the same kind or type are required. Metra may declare a fleet deficiency if failures of the same component in the same application exceeds a failure rate of thirty three percent (33%) during any period based on the average number of such components in service, provided at least five (5) locomotives are in service, during such twelve month period.
- 2) Upon Metra's notice to the Contractor that a Fleet Deficiency exists, the Contractor shall promptly, but in any event not later than forty-eight (48) hours after such notice, unless Metra agrees to a longer interval, commence and thereafter prosecute with due diligence and using qualified personnel, all activities necessary to investigate, analyze and diagnose the cause and extent of the Fleet Deficiency and the proper correction thereof. The Contractor shall promptly provide a written report to Metra describing the cause and extent of the Fleet Deficiency and the Contractor's proposed correction thereof. The Contractor shall submit for Metra's approval and, following Metra approval, shall promptly implement and satisfactorily complete Metra approved corrections of all affected components, at the Contractor's sole cost and at no cost or expense to Metra, as promptly as practicable and in no event later than three (3) months after Metra's initial notice to Contractor of the Fleet Deficiency, and in compliance with the requirements Section 2.5.5 Corrective Work Requirements. The Contractor shall make the correction to all equivalent components in the fleet, not just those in which a failure or malfunction has occurred, including without limitation, all components for which any warranty period has expired, and to all equivalent Metra-owned spare parts.
- 3) The Fleet Deficiency remedy provided for in this paragraph is in addition to, and shall not be construed as a limitation of, any other rights or remedies provided for by this Article or any provision of this Contract or the law.

2.5.7 Timeliness

Time is of the essence in the corrections of all Deficiencies to be undertaken under all applicable warranties. Unless otherwise directed in Metra's notice to Contractor of a Deficiency, the Contractor shall commence correction of the Deficiency at the time specified by Metra, but in no event later than forty-eight (48) hours after the Notice, unless Metra agrees to a longer interval. To ensure timely corrections, the Contractor shall make provisions to have available all necessary facilities and special equipment, and shall use such qualified engineers and product and system specialists as are necessary, including diversion of such persons from the Contractor's other operations or from the operations of its Subcontractors and Suppliers. Contractor shall also use additional shifts and Work on weekends and

holidays, as necessary, to complete timely corrections in accordance with this Section.

2.5.8 Use of Metra-Owned Spare Parts

At the sole discretion of Metra, as determined on a case-by-case basis, Metra owned spare parts may be utilized by the Contractor for correction purposes if the Contractor's replacement part is not immediately available. The Contractor must replace each borrowed part with an equivalent (like-for-like) part within thirty (30) calendar days. Consequently a new part must be replaced with new, a UTEX part replaced with UTEX or new. All costs associated with replacing the spare parts shall be borne by the Contractor. In some cases, a Metra-owned replacement part may be manufactured or remanufactured by a different source than that of the Contractor. In instances where "non-OEM" components are utilized in the repair due to unavailability of an immediate contractor-supplied replacement, the Contractor will be responsible for all costs arising from the removal of a borrowed part and subsequent installation of the contractor's part following the initial repair operation. Consequently, to avoid compensating Metra for repetitive repair operations, the Contractor is encouraged to maintain a sufficient quantity of spare replacement parts available for prompt delivery to Metra.

2.5.9 Delays and Disruption

To prevent delays and disruption to Metra's operations, Metra shall have the right to the continued use of any deficient locomotive, equipment, component, Work or part, until it can be taken out of service and made available to Contractor to correct the Deficiency.

2.5.10 Repairs by Metra

At Metra's sole discretion and option, Metra may investigate, analyze, diagnose and perform the redesign, replacement, or repair of any Deficiency, as Contractor's agent, and Contractor shall pay Metra for such Work. Contractor shall, if required by Metra, supply components, materials, or equipment within ten (10) days after Metra's request in each case. Contractor shall pay Metra the cost of the warranty Work for: (a) outside engineering fees and (b) labor supplied by Metra by multiplying the number of man-hours of Metra labor actually supplied to correct the defect by the wage rate and percent shop overhead. The cost of moving the locomotives(s) if such ~ action is necessary, all applicable freight charges, and Metra's material additives in effect at the time on components, materials, supplies, or equipment furnished by Contractor (subject to yearly adjustment by Metra, based on Metra's material additive rate(s) in effect at time of Work), within thirty (30) days of Metra's invoice.

2.5.11 Warranties of the Corrective Components

The Contractor warrants each corrected component for the remainder of the warranty originally applicable to the component, or for a period of one (1) year from the date of Metra's acceptance of the corrected component, whichever is greater.

2.5.12 No Waiver

No inspection, test, acceptance of, or payment to the Contractor for, any locomotive, equipment, component, Work or part, or for any other purpose shall relieve the Contractor from any duty under, or be deemed to be a waiver of any Warranty, or other right or remedy pursuant to, this Article, the Contract or the law.

2.5.13 No Increase in Maintenance or Operating Costs

In no case shall any correction of any Deficiency, whether pursuant to any warranty or otherwise, call for, require or result in any increase in any maintenance, inspection or test requirement or frequency, or in any additional maintenance, inspection or test requirement, or operating costs beyond that specified in the Contract or in the original edition of the maintenance manual.

2.5.14 Metra Warranty Claim

Where Metra undertakes its own repairs, Metra may file claims consistent with the notice provision no later than 90 days after performing said repairs. Metra shall submit to the Contractor a claim in writing for such costs and expenses ("Warranty Claim"). The Warranty Claim shall identify the Deficiency and the correction to which such costs and expenses are related, and shall provide such other information necessary to document the costs and expenses incurred by Metra and their relationship to the Deficiency and the correction. The Contractor shall reimburse Metra in a timely manner for all such costs and expenses within thirty (30) days after the Contractor's receipt of Metra's Warranty Claim.

2.6 LIQUIDATED DAMAGES

2.6.1 Generally

This Section is controlled by and intended to supplement the Liquidated Damages provision found in the General Conditions. Locomotives that unexpectedly have to be removed from revenue service and remain out of service cause significant damages to Metra's operations and reputation, and to the traveling public which depends upon Metra for timely and reliable daily service.

2.6.2 Removal from Service

For all locomotives removed from service, Contractor or its sureties shall pay agreed liquidated damages at the rate of five hundred dollars (\$500) per day per locomotive until the locomotive is accepted back into service. Those damages are not readily susceptible to calculation. The parties to this Contract therefor agree that liquidated damages are appropriate compensation to Metra. These liquidated damages cover only damages associated with the loss of use of locomotives and do not compensate Metra for damages for breach of warranty or other breach of contract, such as damages for the cost of warranty work or the extra costs of obtaining substitute goods or performance from others. Payment of liquidated damages under this section, and acceptance thereof by Metra, does not constitute a waiver or settlement of any claim (other than for delay in delivering acceptable locomotives or delay in providing a warranty response or correction as required

under this Contract) for damages for such breaches, and nothing in this section is intended to limit such claims.

2.6.3 Delayed Warranty Response or Effective Corrective Action

In the event the Contractor breaches Section 2.5.5 Corrective Work Requirements, and the affected Metra locomotive remains out of service for more than 48 hours, Contractor shall pay to Metra as liquidated damages the sum of five hundred dollars (\$500) per day for every full day thereafter until Contractor provides the services and equipment otherwise required by Section 2.5.5 to be provided within 48 hours after Metra's notice of a Deficiency, or until the locomotive is returned to revenue service, whichever is first.

In any instance in which a Deficiency causes a locomotive to become unavailable for service, and the Contractor fails to complete a Warranty correction to such Deficiency within a time sufficient to enable the locomotive to be tested and returned to service within ten (10) calendar days after the Deficiency caused the locomotive to become unavailable for service, the Contractor shall pay to Metra as liquidated damages the sum of Five Hundred Dollars (\$500.00) for each day that the locomotive is out of service, commencing with the first full out-of-service day after the expiration of the ten (10) day period. The ten (10) day period calculated pursuant to this paragraph shall not include reasonable transportation time to transport the locomotive from Metra to Contractor's repair facility. Note there is no cap or maximum on the amount of liquidated damages under this provision.

2.6.4 Accrued Liquidated Damages

For purposes of liquidated damages for this section, payable on Metra's demand. Metra may, at its discretion, choose to accrue liquidated damages under this provision until there is no further possibility of additional liquidated damages.

2.7 PRICE PROPOSAL

2.7.1 Generally

Pricing shall include all costs, including all costs for design, development, securing all necessary rights (including licensing, support and maintenance costs for any and all Required Software), manufacture, construction, fabrication, assembly, delivery, and all associated costs. No additional costs will be allowed, except for actual performance and payment bond costs. Price will be fixed for the base order of five (5) locomotives with a maximum of twelve (12) locomotives for the contract. A price adjustment will be allowed for locomotives purchased in years 2 through 7 based on the Producer Price Index for Railroad rolling stock manufacturing, published by the United States Department of Labor's Bureau of Labor Statistics (Series ID: PCU3365103365106; Base Date: 198406).

The proposed unit price and the index value for the month and year of the date proposals are received will serve as the Base Index Value to determine the unit pricing for the locomotives released in years 2 through 7. The Current Published Index Value will be the index value for the month and year of the date an option order is received. The unit pricing will be adjusted in accordance with the following example equation.

For Example: If the current published Index Value is 122.5, the Base Index Value is 122.1, and the base unit price is \$1,000,000, then the release order unit price would be:

$$122.5/122.1 \times \$1,000,000.00 = \$1,003,276.00$$

which represents a 0.3276% increase.

2.7.2 Base Index

Producer Price Index for Railroad Rolling Stock Manufacturing; Locomotives, new and rebuilt, including parts; (Series ID: PCU3365103365106; Base Date: 198406)	
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2.7.3 Unit Pricing

The pricing table below must be completed in its entirety. Incomplete pricing proposals may be rejected.

Actual quantities will consist of the base order, plus any options ordered.

2.7.4 Unit Prices

Item Description	Unit Price	Quantity	Total Price
Engineering Costs (A)	N/A	N/A	\$
Training and Document Costs (B)	N/A	N/A	\$
Train Simulator (Spec. M-25-002; Section 19.11.4) (C)	\$	1	\$
Warranty Costs (D)	N/A	N/A	\$
Payment & Performance Bond at 100% for all 12 Locomotives (for evaluation only)	\$	N/A	\$
All-Electric Passenger Locomotives (Base)	\$	5	
All-Electric Passenger Locomotives (Options)	\$	7	\$
Spare Parts			
A/C Unit Part # _____	\$	4	\$
Truck Complete Part # _____	\$	4	\$
Battery Bank (Lowest Replace Unit) Part # _____	\$	8	\$
Traction Motor Part # _____	\$	4	\$
Wheel-Axle-Gear Unit Part # _____	\$	4	\$
Specialty Tools			
Specialty Tools and Test & Diagnostic Equipment (Per Section 19.10 of Technical Specification M- 25-002)	\$	1	\$
Grand Total Cost			\$

2.7.5 Milestone Payment Schedule

Payments for the surety costs and line items A through ~~E~~ E shall be made in accordance with the following schedule:

Item	Payment %	Cumulative %	Description
N/A	N/A	N/A	Reimbursement of actual Metra approved surety costs.
A	100	100	Engineering Design/Drawing Acceptance.
B.1	20	20	Metra's Approval of the Training Program.
B.2	80	100	On successful completion of training at each site.
D	100	100	Approval of Technical and Warranty Support plan.

Payments for individual locomotives shall be made in accordance with the following schedule:

E.1	33	33	Major Equipment Component Installation: to include installation and alignment of the batteries, HEP system, air compressor, high voltage cabinet and trucks.
E.2	33	66	Fitness for Delivery and approval for shipping from facility to Metra.
E.3	33	99	Final Acceptance of each locomotive. Acceptance to include completion and an acceptance of post-delivery testing and closure of Open Items.
E.4	1	100	Completion of the initial three-year warranty.

3 FTA CLAUSES

3.1 NO GOVERNMENT OBLIGATIONS TO THIRD PARTIES

Metra and the Contractor acknowledge and agree that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying contract, absent the express written consent by the Federal Government, the Federal Government is not a party to this contract and shall not be subject to any obligations or liabilities to Metra, the Contractor, or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying contract. The Contractor agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by the FTA. It is further agreed that the clause shall not be modified, except to identify the subcontractor who will be subject to its provisions.

3.2 PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS AND RELATED ACTS

The Contractor acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801 et seq. and U.S. DOT regulations, "Program Fraud Civil Remedies," 49 C.F.R. Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying contract, the Contractor certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Contractor further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Contractor to the extent the Federal Government deems appropriate.

The Contractor also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 U.S.C. chapter 53, the Government reserves the right to impose the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5323(l) on the Contractor, to the extent the Federal Government deems appropriate.

The Contractor agrees to include the above two clauses in each subcontract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the subcontractor who will be subject to the provisions.

3.3 ACCESS TO RECORDS AND REPORTS

See General Conditions 1.12.14.

3.4 FEDERAL CLAUSES

Contractor shall at all times comply with all applicable FTA regulations, policies, procedures and directives, including without limitation those listed directly or by reference in the Master Agreement between Metra and FTA, as they may be amended or promulgated from time to time during the term of this contract. Contractor's failure to so comply shall constitute a material breach of this contract.

3.5 CIVIL RIGHTS REQUIREMENTS

Metra is an Equal Opportunity Employer. As such, Metra agrees to comply with all applicable Federal civil rights laws and implementing regulations. Apart from inconsistent requirements imposed by Federal laws or regulations, Metra agrees to comply with the requirements of 49 U.S.C. § 5323(h) (3) by not using any Federal assistance awarded by FTA to support procurements using exclusionary or discriminatory specifications.

Under this Agreement, the Contractor shall at all times comply with the following requirements and shall include these requirements in each subcontract entered into as part thereof.

1. Nondiscrimination. In accordance with Federal transit law at 49 U.S.C. § 5332, the Contractor agrees that it will not discriminate against any employee or applicant for employment because of race, color, religion, national origin, sex, disability, or age. In addition, the Contractor agrees to comply with applicable Federal implementing regulations and other implementing requirements FTA may issue.
2. Race, Color, Religion, National Origin, Sex. In accordance with Title VII of the Civil Rights Act, as amended, 42 U.S.C. § 2000e et seq., and Federal transit laws at 49 U.S.C. § 5332, the Contractor agrees to comply with all applicable equal employment opportunity requirements of U.S. Department of Labor (U.S. DOL) regulations, "Office of Federal Contract Compliance Programs, Equal Employment Opportunity, Department of Labor," 41 C.F.R. chapter 60, and Executive Order No. 11246, "Equal Employment Opportunity in Federal Employment," September 24, 1965, 42 U.S.C. § 2000e note, as amended by any later Executive Order that amends or supersedes it, referenced in 42 U.S.C. § 2000e note. The Contractor agrees to take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, religion, national origin, or sex (including sexual orientation and gender identity). Such action shall include, but not be limited to, the following: employment, promotion, demotion or transfer, recruitment or recruitment advertising, layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. In addition, the Contractor agrees to comply with any implementing requirements FTA may issue.
3. Age. In accordance with the Age Discrimination in Employment Act, 29 U.S.C. §§ 621-634, U.S. Equal Employment Opportunity Commission (U.S. EEOC) regulations, "Age Discrimination in Employment Act," 29 C.F.R. part 1625, the Age Discrimination Act of 1975, as amended, 42 U.S.C. § 6101 et seq., U.S. Health and Human Services regulations, "Nondiscrimination on the Basis of Age in Programs or Activities Receiving Federal Financial Assistance," 45 C.F.R. part 90, and Federal transit law at 49 U.S.C. § 5332, the Contractor agrees to refrain from discrimination against present and prospective employees for reason of age. In addition, the Contractor agrees to comply with any implementing requirements FTA may issue.
4. Disabilities. In accordance with section 504 of the Rehabilitation Act of 1973, as amended, 29 U.S.C. § 794, the Americans with Disabilities Act of 1990, as amended, 42 U.S.C. § 12101 et seq., the Architectural Barriers Act of 1968, as amended, 42 U.S.C. § 4151 et seq., and Federal transit law at 49 U.S.C. § 5332, the Contractor agrees that it will not discriminate against individuals on the basis of disability. In addition, the Contractor agrees to comply with any implementing requirements FTA may issue.

3.6 INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS

The provisions herein include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1F or most recent version are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FTA mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Contractor shall not perform any act, fail to perform any act, or refuse to comply with Metra requests which would cause Metra to be in violation of the FTA terms and conditions.

3.7 CARGO PREFERENCE

The Contractor agrees:

To use privately owned United States-Flag commercial vessels to ship at least 50 percent of the gross tonnage (computed separately for dry bulk carriers, dry cargo liners, and tankers) involved whenever shipping any equipment, material, or commodities pursuant to the underlying contract to the extent such vessels are available at fair and reasonable rates for United States-Flag commercial vessels;

To furnish within 20 working days following the date of loading for shipments originating within the United States or within 30 working days following the date of leading for shipments originating outside the United States, a legible copy of a rated, "on-board" commercial ocean bill-of-lading in English for each shipment of cargo described in the preceding paragraph to the Division of National Cargo, Office of Market Development, Maritime Administration, Washington, DB 20590 and to the FTA recipient (through the Contractor in the case of a subcontractor's bill-of-lading);

To include these requirements in all subcontracts issued pursuant to this contract when the subcontract may involve the transport of equipment, material, or commodities by ocean vessel.

3.8 FLY AMERICA REQUIREMENTS

a) Definitions. As used in this clause-

"International air transportation" means transportation by air between a place in the United States and a place outside the United States or between two places both of which are outside the United States.

"United States" means the 50 States, the District of Columbia, and outlying areas.

"U.S.-flag air carrier" means an air carrier holding a certificate under 49 U.S.C. Chapter 411.

b) When Federal funds are used to fund travel, Section 5 of the International Air Transportation Fair Competitive Practices Act of 1974 (49 U.S.C. 40118) (Fly America

Act) requires contractors, recipients, and others use U.S.-flag air carriers for U.S. Government-financed international air transportation of personnel (and their personal effects) or property, to the extent that service by those carriers is available. It requires the Comptroller General of the United States, in the absence of satisfactory proof of the necessity for foreign-flag air transportation, to disallow expenditures from funds, appropriated or otherwise established for the account of the United States, for international air transportation secured aboard a foreign-flag air carrier if a U.S.-flag air carrier is available to provide such services.

- c) If available, the Contractor, in performing work under this contract, shall use U.S.-flag carriers for international air transportation of personnel (and their personal effects) or property.
- d) In the event that the Contractor selects a carrier other than a U.S.-flag air carrier for international air transportation, the Contractor shall include a statement on vouchers involving such transportation essentially as follows:

Statement of Unavailability of U.S.-Flag Air Carriers

International air transportation of persons (and their personal effects) or property by U.S.-flag air carrier was not available or it was necessary to use foreign-flag air carrier service for the following reasons. See FAR § 47.403. *[State reasons]*:

The Contractor shall include the substance of this clause, including this paragraph (e), in each subcontract or purchase under this contract that may involve international air transportation.

3.9 TRANSIT EMPLOYEE PROTECTIVE AGREEMENTS

Omitted.

3.10 DRUG AND ALCOHOL TESTING

The Contractor agrees to participate in Metra's drug and alcohol program established in compliance with 49 CFR 655.

3.11 PATENT RIGHTS

The following requirements apply to each contract involving experimental, developmental, or research work:

General - If any invention, improvement, or discovery is conceived or first actually reduced to practice in the course of or under the contract to which this Attachment has been added, and that invention, improvement, or discovery is patentable under the laws of the United States of America or any foreign country, Metra and Contractor agree to take actions necessary to provide immediate notice and a detailed report to the party at a higher tier until FTA is ultimately notified.

Unless the Federal Government later makes a contrary determination in writing, irrespective of the Contractor's status (a large business, small business, state government or state instrumentality, local government, nonprofit organization, institution of higher education, individual), Metra and the Contractor agree to take the necessary actions to

provide, through FTA, those rights in that invention due the Federal Government as described in U.S. Department of Commerce regulations, "Rights to Inventions Made by Nonprofit Organizations and Small Business Firms Under Government Grants, Contracts and Cooperative Agreements," 37 C.F.R. Part 401.

The Contractor also agrees to include the requirements of this clause in each subcontract for experimental, developmental, or research work financed in whole or in part with Federal assistance provided by FTA.

3.12 COPYRIGHT AND RIGHTS IN DATA

The following requirements apply to each contract involving experimental, developmental or research work:

The term "subject data" used in this clause means recorded information, whether or not copyrighted, that is delivered or specified to be delivered under the contract. The term includes graphic or pictorial delineation in media such as drawings or photographs; text in specifications or related performance or design-type documents; machine forms such as punched cards, magnetic tape, or computer memory printouts; and information retained in computer memory. Examples include, but are not limited to: computer software, engineering drawings and associated lists, specifications, standards, process sheets, manuals, technical reports, catalog item identifications, and related information. The term "subject data" does not include financial reports, cost analyses, and similar information incidental to contract administration.

The following restrictions apply to all subject data first produced in the performance of the contract to which this Attachment has been added:

Except for its own internal use, the Purchaser or Contractor may not publish or reproduce subject data in whole or in part, or in any manner or form, nor may the Purchaser or Contractor authorize others to do so, without the written consent of the Federal Government, until such time as the Federal Government may have either released or approved the release of such data to the public; this restriction on publication, however, does not apply to any contract with an academic institution.

In accordance with 49 C.F.R. § 18.34 and 49 C.F.R. § 19.36, the Federal Government reserves a royalty-free, non-exclusive and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for "Federal Government purposes," any subject data or copyright described in subsections (2)(b)1 and (2)(b)2 of this clause below. As used in the previous sentence, "for Federal Government purposes," means use only for the direct purposes of the Federal Government. Without the copyright owner's consent, the Federal Government may not extend its Federal license to any other party.

Any subject data developed under that contract, whether or not a copyright has been obtained; and

Any rights of copyright purchased by the Purchaser or Contractor using Federal assistance in whole or in part provided by FTA.

When FTA awards Federal assistance for experimental, developmental, or research work, it is FTA's general intention to increase transportation knowledge available to the public, rather than to restrict the benefits resulting from the work to participants in that work. Therefore, unless FTA determines otherwise, the Purchaser and the Contractor performing experimental, developmental, or research work required by the underlying contract to which this Attachment is added agrees to permit FTA to make available to the public, either FTA's license in the copyright to any subject data developed in the course of that contract, or a copy of the subject data first produced under the contract for which a copyright has not been obtained. If the experimental, developmental, or research work, which is the subject of the underlying contract, is not completed for any reason whatsoever, all data developed under that contract shall become subject data as defined in subsection (a) of this clause and shall be delivered as the Federal Government may direct. This subsection (c), however, does not apply to adaptations of automatic data processing equipment or programs for the Purchaser or Contractor's use whose costs are financed in whole or in part with Federal assistance provided by FTA for transportation capital projects.

Unless prohibited by state law, upon request by the Federal Government, the Purchaser and the Contractor agree to indemnify, save, and hold harmless the Federal Government, its officers, agents, and employees acting within the scope of their official duties against any liability, including costs and expenses, resulting from any willful or intentional violation by the Purchaser or Contractor of proprietary rights, copyrights, or right of privacy, arising out of the publication, translation, reproduction, delivery, use, or disposition of any data furnished under that contract. Neither the Purchaser nor the Contractor shall be required to indemnify the Federal Government for any such liability arising out of the wrongful act of any employee, official, or agents of the Federal Government.

Nothing contained in this clause on rights in data shall imply a license to the Federal Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Federal Government under any patent.

Data developed by the Purchaser or Contractor and financed entirely without using Federal assistance provided by the Federal Government that has been incorporated into work required by the underlying contract to which this Attachment has been added is exempt from the requirements of subsections (b), (c), and (d) of this clause, provided that the Purchaser or Contractor identifies that data in writing at the time of delivery of the contract work.

Unless FTA determines otherwise, the Contractor agrees to include these requirements in each subcontract for experimental, developmental, or research work financed in whole or in part with Federal assistance provided by FTA.

Unless the Federal Government later makes a contrary determination in writing, irrespective of the Contractor's status (i.e., a large business, small business, state government or state instrumentality, local government, nonprofit organization, institution of higher education, individual, etc.), the Purchaser and the Contractor agree to take the

necessary actions to provide, through FTA, those rights in that invention due the Federal Government as described in U.S. Department of Commerce regulations, "Rights to Inventions Made by Nonprofit Organizations and Small Business Firms Under Government Grants, Contracts and Cooperative Agreements," 37 C.F.R. Part 401.

The Contractor also agrees to include these requirements in each subcontract for experimental, developmental, or research work financed in whole or in part with Federal assistance provided by FTA.

3.13 ENERGY CONSERVATION REQUIREMENTS

The Contractor agrees to comply with mandatory standards and policies relating to energy efficiency which are contained in the state energy conservation plan issued in compliance with the Energy Policy and Conservation Act.

3.14 ASSIGNABILITY CLAUSE

See General Conditions 1.12.23

3.15 TERMINATION

See General Conditions 1.12.8 and 1.12.9

3.16 RECYCLED PRODUCTS

The Contractor agrees to provide a preference for those products and services that conserve natural resources, protect the environment, and are energy efficient by complying with and facilitating compliance with Section 6002 of the Resource Conservation and Recovery Act, as amended, 42 U.S.C. § 6962, and U.S. Environmental Protection Agency (U.S. EPA), "Comprehensive Procurement Guideline for Products Containing Recovered Materials," 40 C.F.R. part 247.

3.17 SUSPENSION AND DEBARMENT

The Contractor shall comply and facilitate compliance with U.S. DOT regulations, "Nonprocurement Suspension and Debarment," 2 C.F.R. part 1200, which adopts and supplements the U.S. Office of Management and Budget (U.S. OMB) "Guidelines to Agencies on Governmentwide Debarment and Suspension (Nonprocurement)," 2 C.F.R. part 180. These provisions apply to each contract at any tier of \$25,000 or more, and to each contract at any tier for a federally required audit (irrespective of the contract amount), and to each contract at any tier that must be approved by an FTA official irrespective of the contract amount. As such, the Contractor shall verify that its principals, affiliates, and subcontractors are eligible to participate in this federally funded contract and are not presently declared by any Federal department or agency to be:

- a) Debarred from participation in any federally assisted Award;
- b) Suspended from participation in any federally assisted Award;
- c) Proposed for debarment from participation in any federally assisted Award;
- d) Declared ineligible to participate in any federally assisted Award;
- e) Voluntarily excluded from participation in any federally assisted Award; or
- f) Disqualified from participation in any federally assisted Award.

By signing and submitting its bid or proposal, the bidder or proposer certifies as follows:

The certification in this clause is a material representation of fact relied upon by Metra. If it is later determined by Metra that the bidder or proposer knowingly rendered an erroneous certification, in addition to remedies available to Metra, the Federal Government may pursue available remedies, including but not limited to suspension and/or debarment. The bidder or proposer agrees to comply with the requirements of 2 C.F.R. part 180, subpart C, as supplemented by 2 C.F.R. part 1200, while this offer is valid and throughout the period of any contract that may arise from this offer. The bidder or proposer further agrees to include a provision requiring such compliance in its lower tier covered transactions.

3.18 CLEAN AIR ACT AND FEDERAL WATER POLLUTION CONTROL ACT

The Contractor agrees:

- a) It will not use any violating facilities;
- b) It will report the use of facilities placed on or likely to be placed on the U.S. EPA “List of Violating Facilities;”
- c) It will report violations of use of prohibited facilities to FTA; and
- d) It will comply with the inspection and other requirements of the Clean Air Act, as amended, (42 U.S.C. §§ 7401 – 7671q); and the Federal Water Pollution Control Act as amended, (33 U.S.C. §§ 1251-1387).

3.19 BUY AMERICA REQUIREMENTS

The contractor agrees to comply with 49 U.S.C. 5323(j) and 49 C.F.R. part 661, which provide that Federal funds may not be obligated unless all steel, iron, and manufactured products used in FTA funded projects are produced in the United States, unless a waiver has been granted by FTA or the product is subject to a general waiver. General waivers are listed in 49 C.F.R. § 661.7. Separate requirements for rolling stock are set out at 49 U.S.C. 5323(j)(2)(C) and 49 C.F.R. § 661.11..

A bidder or offeror must submit to the FTA recipient the appropriate Buy America certification with all bids or offers on FTA-funded contracts, except those subject to a general waiver. Bids or offers that are not accompanied by a completed Buy America certification must be rejected as nonresponsive.

3.20 BREACHES AND DISPUTE RESOLUTION

See General Conditions 1.12.9 and 1.15.4.

3.21 ADA ACCESS AND ACCESSIBILITY

A third party contractor providing public transportation services must operate its services in compliance with 42 U.S.C. Sections 12101 et seq.; DOT regulations, “Transportation Services for Individuals with Disabilities (ADA)” using facilities and equipment that comply with 49 CFR Part 37; and Joint ATBCB/DOT regulations, “Americans with Disabilities (ADA) Accessibility Specifications for Transportation Vehicles,” 36 CFR Part 1192 and 49 CFR Part 38. Private entities must comply with the requirements of 49 CFR Part 37 applicable to public entities with which they contract to provide public

transportation services. The recipient should advise its third party contractors operating public transportation services to review the requirements for public entities in this context.

3.22 PRE-AWARD AND POST-DELIVERY AUDIT REQUIREMENTS

The Contractor agrees to comply with 49 USC § 5323(m) and FTA's implementing regulation at 49 CFR Part 663. The Contractor shall comply with the Buy America certification(s) submitted with its proposal/bid. The Contractor agrees to participate and cooperate in any pre-award and post-delivery audits performed pursuant to 49 C.F.R. part 663 and related FTA guidance.

3.23 CONTRACT WORK HOURS AND SAFETY STANDARDS ACT

The Contractor shall comply with all federal laws, regulations, and requirements providing wage and hour protections for non-construction employees, in accordance with 40 U.S.C. § 3702, Contract Work Hours and Safety Standards Act, and other relevant parts of that Act, 40 U.S.C. § 3701 *et seq.*, and U.S. DOL regulations, "Labor Standards Provisions Applicable to Contracts Covering Federally Financed and Assisted Construction (also Labor Standards Provisions Applicable to Non-construction Contracts Subject to the Contract Work Hours and Safety Standards Act)," 29 C.F.R. part 5.

The Contractor shall maintain payrolls and basic payroll records during the course of the work and shall preserve them for a period of three (3) years from the completion of the contract for all laborers and mechanics, including guards and watchmen, working on the contract. Such records shall contain the name and address of each such employee, social security number, correct classifications, hourly rates of wages paid, daily and weekly number of hours worked, deductions made, and actual wages paid.

Such records maintained under this paragraph shall be made available by the Contractor for inspection, copying, or transcription by authorized representatives of the FTA and the Department of Labor, and the Contractor will permit such representatives to interview employees during working hours on the job.

The Contractor shall require the inclusion of the language of this clause within subcontracts of all tiers.

3.24 SAFE OPERATION OF MOTOR VEHICLES

3.24.1 Seat Belt Use

The Contractor is encouraged to adopt and promote on-the-job seat belt use policies and programs for its employees and other personnel that operate company-owned vehicles, company-rented vehicles, or personally operated vehicles. The terms "company-owned" and "company-leased" refer to vehicles owned or leased either by the Contractor or Metra.

3.24.2 Distracted Driving

The Contractor agrees to adopt and enforce workplace safety policies to decrease crashes caused by distracted drivers, including policies to ban text messaging while using an electronic device supplied by an employer, and driving a vehicle the driver

owns or rents, a vehicle Contactor owns, leases, or rents, or a privately-owned vehicle when on official business in connection with the work performed under this agreement.

AFFIDAVITS /CERTIFICATIONS FOR CONTRACTORS

FILL IN THE BLANKS AND SUBMIT THIS FORM WITH BID. HAVE APPLICABLE SIGNATURES NOTARIZED.

STATE OF _____

COUNTY OF _____

The Undersigned represents that s/he is _____ (“Undersigned”) the
(Print Name)

_____ of _____
(Print President or Other Proper Title) Print name of Entity)

(“Company” or “Undersigned”) and is authorized to attest on behalf of himself/herself and said Company by stating as follows:

A. PROHIBITED INTERESTS AND CONFLICTS OF INTEREST

1. PUBLIC OFFICER PROHIBITED ACTIVITIES ACT AFFIDAVIT

The Company is the bidder submitting this bid and that the proposer is in compliance with Provisions set forth in the Public Officer Prohibited Activities Act, 50 ILCS 105/0.01, et seq., and to the best of its knowledge and belief, no person holding office, either by election or appointment under the laws or constitution of this State, is in any manner interested, either directly or indirectly, in his/her own name or in the name of any other person, association, trust, or corporation, in this contract or the performance of any work/services under this contract which such officer has been or may be called upon to act or vote.

2. METRA'S CONFLICTS OF INTEREST ORDINANCE

Pursuant to §4.03 of Metra's Bidding Regulations:

Members of the Board, officers, and employees of Metra, their spouses, their children, their parents, their brothers and sisters and their children, are prohibited from having or acquiring any contract or any direct pecuniary interest in any contract which will be wholly or partially performed by the payment of funds or the transfer of property of the Metra. Any firm, partnership, association, or corporation from which any member of the Board, officer, or employee of the Metra is entitled to receive more than seven and one half percent (7-1/2%) of the total distributable income, is prohibited from having or acquiring any contract or direct pecuniary interest in any contract which will be performed in whole or in part by payment of funds or the transfer of property of Metra.

Any firm, partnership, association, or corporation from which members of the Board, officers, employees of Metra, their spouses, their children, their parents, their brothers and sisters and their children, are entitled to receive in the aggregate more than fifteen percent (15%) of the total distributable income, is prohibited from having or acquiring any contract or direct pecuniary interest in any contract which will be performed in whole or in part by the payment of funds or the transfer of property of Metra.

Board members and employees are prohibited from participating in the selection, award, or administration of a contract supported by Metra funds, federal funds, or any other grant funds if a real conflict of interest or, to his or her knowledge, an apparent conflict of interest would be involved. A real or apparent conflict of interest would arise when any of the following has an interest in the entity selected for award: (a) an employee, officer, board member, or agent; (b) any member of his or her immediate family (as listed above in the first paragraph); (c) his or her business partner; or (d) an organization that employs; or intends to employ, any of the above. "Apparent" is defined under this paragraph as being one in which a person is an officer or director of an entity, or has an interest in the ownership or profits of an entity, and such interest appears substantial to a reasonable person. "Interest" is defined under this paragraph as a direct or indirect entitlement to receive any of the entity's profits.

In addition, Undersigned states that no officer of Metra has represented, either as an agent or otherwise, the proposer with respect to this application or bid for contract. Finally, Undersigned states that to best of its knowledge and belief, no officer of Metra has received or been offered from any person on behalf of the proposer, either directly or indirectly, any money or other thing of value as a gift, bribe, or means of influencing any vote or action in any official's capacity. Furthermore, Undersigned certifies that, to the best of its knowledge, it is in compliance with Metra's Bidding Regulations and is unaware of any of the foregoing persons having an interest prohibited by Section 4.03 of the Bidding Regulations.

B. NON-COLLUSION AFFIDAVIT

The Company is the bidder submitting this bid and that such bid was not made in the interest of or on behalf of any undisclosed person, partnership, company, organization or corporation; that such bid is genuine and not collusive or a sham and that said proposer has not been a party to any agreement or collusion among bidders/proposers or prospective bidders/proposers in restraint of freedom of competition by agreement to bid a fixed price or other-wise, or to refrain from proposing, and has not, directly or indirectly, by agreement, communication, or conference with anyone, attempted to induce action prejudicial to the interest of Metra, or of any proposer or anyone else interested in the proposed contract.

C. CERTIFICATE FOR BID

As a part of its offer to contract for services to Metra, the Undersigned hereby certifies that neither the Company nor any of its principals are barred from proposing on the aforementioned contract as a result of a violation of either Section 33E-3 or 33E-4 of 720 ILCS 5/33E.

D. CERTIFICATE OF DEBARMENT

As the potential contractor for a primary contract, or subcontractor to a primary contractor for subcontracts over \$25,000.00, the Undersigned certifies to the best of its knowledge and belief, the Company and its principals:

1. Are not included on the U.S. Comptroller General's Consolidated List of Persons or Firms Debarred from federal contracts for violations of various public contracts incorporating labor standard provisions;
2. Are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from covered transactions by any federal, state, or local government entity;
3. (a) have not been convicted under the laws of Illinois or any other state of bribery or attempting to bribe any government officer or employee or have made an admission of guilt of that conduct that is a matter of record but has not been prosecuted for that conduct. No business shall be barred from contracting with Metra as a result of a conviction under this Section of any employee or agent of the business if the employee or agent is no longer employed by the business and: i) the business has been finally adjudicated not guilty; or ii) the business demonstrates to Metra, and Metra finds that the commission of the offense was not authorized, requested, commanded, or performed by a director, officer, or high managerial agent on behalf of the business as provided in paragraph (2) of subsection (a) of Section 5-4 of the Criminal Code of 1961. For purposes of this Subsection (a), when an official, agent, or employee of a business committed the bribery or attempted bribery on behalf of the business and in accordance with the direction or authorization of a responsible official of the business, the business shall be chargeable with the conduct. Contractor hereby certifies that the contractor and its subcontractors are not barred from being awarded a contract or subcontract under this Section.

(b) Are not convicted of a felony. No person or business shall do business with Metra from the date of conviction until 5 years after the date of completion of the sentence for that felony, unless no person held responsible by a prosecutorial office for the facts upon which the conviction was based continues to have any involvement with the business. Contractor hereby certifies the Contractor is not barred from being awarded a contract under this Section.
4. Are not presently indicted for, or otherwise criminally or civilly charged by a government entity (federal, state or local) for any reason; or
5. Have not, within a three-year period preceding this bid, had one or more public transactions (federal, state or local) terminated for cause or default.

(If the Undersigned is unable to certify to any of the statements in this certification, the Undersigned shall attach an explanation).

THE UNDERSIGNED CERTIFIES OR AFFIRMS THE TRUTHFULNESS AND ACCURACY OF THE CONTENTS OF THE STATEMENTS SUBMITTED ON OR WITH THIS CERTIFICATION AND UNDERSTANDS THAT THE PROVISIONS OF THE FEDERAL FALSE CLAIMS ACT ARE APPLICABLE THERETO.

E. CERTIFICATION OF RESTRICTIONS ON LOBBYING

This certification is required to be completed with the solicitation if the bid exceeds \$100,000.00. Failure to return this certification with the solicitation may result in a determination that the offer is non-responsive or non-responsible.

The Undersigned certifies to the best of its knowledge or belief that:

1. No federal appropriated funds have been paid or will be paid, by or on behalf of the Undersigned, to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any federal contract, the making of any federal grant, the making of an federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any federal contract, grant, loan, or cooperative agreement.
2. If any funds other than federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee or any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of federal contact, grant, loan, or cooperative agreement, the Undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying", in accordance with its instructions.
3. The Undersigned shall require that the language of this certification be included in the award document for all sub-awards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements), and that all subrecipients shall certify and disclose accordingly.

F. REVOLVING DOOR PROHIBITION

The Undersigned has reviewed its list of employees (and subcontractors) involved in this procurement and it has no knowledge of any former Metra employee being involved in the solicitation process in violation of Section 4.05 of Metra's Bidding Regulations.

Section 4.05 states that all Metra Board members and non-contract personnel in specified positions are expressly prohibited, for a period of one (1) year after terminating employment with Metra, from engaging in any procurement activity with Metra. A "specified position" is one that is non-contract, is held for a period of six (6) months preceding such termination, is at a Grade P12 or above (including M Grades), and is not merely clerical or ministerial in nature. The prohibition includes, but is not limited to: lobbying the procurement process; specifying;

bidding; or proposing bid, proposal, or contract documents on the part of the former employee or Board member, or in association with the former employee or Board member by or on behalf of any firm, partnership, association, or corporation affiliated with the former employee or Board member. The Undersigned certifies that the award and/or execution of a contract would not cause any violation of Section 4.05.

G. CONTINUING OBLIGATION TO INFORM METRA

If Company acquires information after executing this certification that there may be an actual or apparent violation of any of the above Company shall promptly bring such information to the attention of Metra's Procurement Officer. Company shall thereafter cooperate with Metra's review and investigation of such information, and comply with any instruction it receives from Metra in regard to remedying the situation.

H. ILLINOIS WAGE ACT/DAVIS-BACON ACT CERTIFICATION

To the extent applicable, the Undersigned hereby certifies that the wage rate paid by said Undersigned will be no less than the wage rates set forth by the State of Illinois and the Federal Davis-Bacon Act. Labor classifications and current wage rates are available for review at Metra's headquarters upon written request.

I. PENALTIES

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into the Contract pursuant to Metra's regulations and 31 U.S.C. §1352. A Company who makes a false statement, materials to the certification, is subject to termination for cause.

J. DEBT TO STATE

Contractor certifies that neither it, nor its affiliate(s) is/are barred from receiving a contract Award because Contractor, or its affiliate(s) is/are delinquent in payment of any debt to the State, unless Contractor, or its affiliate(s), has/have entered into a deferred payment plan to pay off the debt, and Contractor acknowledges Metra may declare the Agreement void if certification is false. (5 ILCS 500/50-11).

K. INTERNATIONAL BOYCOTT

Contractor certifies that neither it or any substantially owned affiliated company is participating or shall participate in an international boycott in violation of the provision of the U.S. Export Administration Act of 1979 (50 USC Appendix 2401 et seq. or regulations of the Department of Commerce under that Act (15 CFR Parts 730 through 774).

L. GOODS FROM CHILD LABOR ACT

Contractor certifies that no foreign-made equipment, materials, or supplies furnished to the State under this Agreement have been produced in whole or in part by the labor of any child under the age of twelve (12) (30 ILCS 584).

PRIME CONTRACTOR SIGNATURES REQUIRED ON NEXT PAGE

The undersigned certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, the Company understands and agrees that the provisions of 31 U.S.C. §3801, et seq., apply to this certification and disclosure.

(Print) Name of Company

By: _____ Date: _____
Signature of Person Making Affidavit (Undersigned listed above)

(Print) Title of Person Making Affidavit

NOTARIZE HERE

Subscribed and sworn to before me

This _____ day of _____ 20____.

Notary Public

CERTAIN SUBCONTRACTOR SIGNATURES REQUIRED ON NEXT PAGE

**SUBCONTRACTOR
DEBARMENT CERTIFICATION**

NOTE: PRIMARY CONTRACTOR IS RESPONSIBLE FOR THIS FORM BEING SUBMITTED PRIOR TO AWARD. SUBCONTRACTOR(S) WITH SUBCONTRACTS OVER \$25,000.00 MUST ALSO COMPLETE AND SIGN THE FOLLOWING:

STATE OF _____

COUNTY OF _____

The Undersigned represents that s/he is _____ (“Undersigned Subcontractor”)
(Print Name)

The _____ of _____
(Print “President” or Other Proper Title) (Print name of Subcontractor Entity)

(“Subcontractor” or “Undersigned Subcontractor”) and is authorized to attest on behalf of himself/herself and Subcontractor Entity by stating as follows:

1. As a subcontractor to a primary contractor for subcontracts over \$25,000.00, the undersigned Subcontractor certified to the best of its knowledge and belief that the debarment statements in Section D above are truthful and accurate.
2. If Undersigned Subcontractor acquires information after executing this certification that there may be an actual or apparent violation of any of the above, Subcontractor shall promptly bring such information to the attention of Metra’s Procurement Officer.
3. The provisions of Section 1 above are applicable.

(Print) Name of Subcontractor Entity

By: _____
Signature of Person Making Affidavit (Undersigned listed above)

Date: _____

(Print) Title of Person Making Affidavit

NOTARIZE HERE

Subscribed and sworn to before me

This _____ day of _____ 20____.

Notary Public